

Tender Document for

Deployment of Gateway and Network Security



Tender Specification
Tr-414, dated 28-Apr-2026
RFx No - 8100050781

Due Date of Opening - 28-May-2026

Tender Document Fee - Rs. 5,000
(incl. GST @ 18%)

Executive Director (EITC)
Energy InfoTech Centre
Chhattisgarh State Power Distribution Company Limited
Block No. 8, Dangania, RAIPUR (CG) - 492 013
Phone: (0771) – 257 4123, 4130
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CSPDCL	
CIN	U40108CT2003SGC015822
PAN	AADCC6047K
GSTN	22AADCC6047K1ZR

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CHHATTISGARH STATE POWER DISTRIBUTION COMPANY LTD.

(Government of Chhattisgarh Undertaking)

**OFFICE OF THE EXECUTIVE DIRECTOR (EITC)**

CIN: U40108CT2003SGC015822

telephone: (0771) - 2574 123, Fax: (0771)-2574 125

Website: www.cspc.co.ine-mail: eitc@cspc.co.in

07-01/EITC/ISC/Tr-414

, Raipur

Dated –

28-Apr-2026**NOTICE INVITING TENDER**

Sealed offers are invited from experienced bidders for -

SN.	Tender No.	Particulars	Tender Document Fee	EMD	Due Date & time of submission
1.	Tr-414 & RFx No. 8100050781	Deployment of Gateway and Network Security	Rs. 5,000 (Incl. GST)	Rs. Five Lakhs	28-May-2026 14:00 Hrs.

1. Tender document can be downloaded from CSPDCL website or e-bidding portal. Hardcopy of Tender documents shall **NOT** be provided by CSPDCL. It is obligatory to submit the cost towards the Tender document fee and EMD to this office, Tender Fee and EMD (Earnest Money Deposit) will be paid online through payment gateway via e-bidding portal. The tender document fee is non-refundable.
2. Tenders duly filled shall be accepted latest up to 14:00 Hrs on the Due Date, and the Techno-Commercial bid shall be opened on the same day at 15:30 hrs. If the due date of Tender submission is declared a holiday, the same will be opened on next working day, at the same time.
3. CSPDCL reserves the right to accept or reject any or all the offers, in part or full without assigning any reason whatsoever.
4. For further details & downloading the Tender document, please visit at our web site www.cspdcl.co.in / **tender notices / central offices.**
5. The tender will be processed online through ebidding module of SAP SRM with details as below -
<http://ebidding.cspcl.co.in:50700/irj/portal>
<http://www.cspcl.co.in/ebidding> portal
 E-bidding Helpline no. 0771-2576672, 2576673 (EITC, CSPDCL)
 The bidder must have a valid Digital Signature and SAP SRM User ID for ebidding.
Manuals and video Tutorials for Bidders are available in
<https://cspdcl.co.in/Tenders/E-bidding>

Please note that notice for corrigendum or extension of due date of tender opening shall not be published in newspaper. It will be displayed only on the website and e-bidding portal.

SAVE ELECTRICITY**Executive Director (EITC)**

Fact Sheet – Tender @ Glance

SN	Particulars	Tender Details	Tender Clause No.
1.	Tender No.	Tr-414	NIT
2.	RFX No. (e-bidding)	8100050781	NIT
3.	Tender Particulars	Deployment of Gateway and Network Security	NIT
4.	Tender issuing authority	Executive Director (EITC) CSPDCL	NIT
5.	Issue of NIT	28-Apr-2026	-
6.	Issue/download of tender document	28-Apr-2026	-
7.	Due date for submitting Pre-bid queries	08-May-2026; 17:30 Hrs	7(a)
8.	Pre-bid Meeting	11-May-2026; 12:00 Hrs	7(b)
9.	Due date of Bid Submission	28-May-2026; 14:00 Hrs	NIT
10.	Due date of Opening (Techno-Commercial Bid)	28-May-2026; 15:30 Hrs	NIT
11.	Price bid Opening Date	To be intimated later	10 (g)
12.	Address for: - Bid Submission, Bid Opening, and Correspondence	The Executive Director (EITC) Block No. – 8, CSPDCL, Dangania, Raipur (CG), Pin Code-492 013 Tel: (0771) – 257 4123	66
13.	Bid submission / Process	Bid submission shall be online through e-bidding only	Annexure-1
14.	Availability of tender document (can be downloaded from:-)	i) cspdcl.co.in/tender/ tendernotices/centraloffices ii) http://ebidding.cspdcl.co.in: 50700/irj/portal	Annexure-1
15.	E-bidding minimum requirement	i) Digital Signature, ii) SAP-SRM User ID and Password	Annexure-1
16.	Method of Selection	Lowest Cost (L-1) Basis	12 (c)
17.	Eligibility Criteria / PQR	As per the Clause-4	4
18.	Scope of work	Broad Scope as per Clause-5	Annexure-3 & 4
13.	Tender Document Fee	Rs. 5,000 (non-refundable)	6 (a)
19.	Earnest Money Deposit	Rs. 5 Lakhs through online mode	6 (b)
20.	Validity of bid	180 days from the date of opening of bid	30
21.	Security Deposit	10% of the Total Order Value	32
22.	Payment Terms	80-20% as per clause 35	35
23.	Contract period	42 months from the date of placing order	40

1. Introduction

- a. Chhattisgarh State Power Distribution Company Limited (hereinafter referred to as "CSPDCL") is taking care of various IT activities (existing as well as new IT initiatives) for all three Power Companies, as under-
 - i. Chhattisgarh State Power Generation Company (CSPGCL)
 - ii. Chhattisgarh State Power Transmission Company (CSPTCL)
 - iii. Chhattisgarh State Power Distribution Company (CSPDCL)
- b. Chhattisgarh State Power Distribution Company Limited (hereinafter referred to as "CSPDCL") is taking care of various IT activities (existing as well as new IT initiatives) for all the three Power Companies. Thus CSPDCL mentioned in this RFP applies for all the three Chhattisgarh State Power Companies, as well. Energy Info Tech Centre (EITC), a department of CSPDCL, has been entrusted to smoothly carry out IT activities across all the three Power Companies.
- c. Executive Director (EITC), on behalf of CSPDCL invites sealed offer / bid from the experienced bidders for Deployment of Gateway & Network Security Products, as per requirement.

2. Definitions of terms

The following terms/words shall mean unless otherwise excluded by and repugnant context or the meaning thereof: -

- a. 'Tender' or 'RFP' means Request for Proposal which is been used interchangeably for the purpose for this document.
- b. 'Bid' means that Technical & Financial proposal/offer as per this RFP / Tender.
- c. 'Bidder' means any Firm or Company submitting the proposal in response of RFP.
- d. 'Prospective Bidder' means the potential Bidder who intends to participate in Tender process. Subsequently, the bid may or may not be submitted by them.
- e. 'L-1 Bidder' means Bidder who has quoted/offered lowest rates.
- f. 'Selected Bidder' means the successful Bidder who is found to be the lowest Bidder after conclusion of the bidding process, subject to compliance to all the Terms & Conditions of Tender and on whom Order is placed by CSPDCL. It shall include their authorized representatives, successors and permitted assignees.
- g. 'System Integrator' (SI) means professional Firm or Company who has been entrusted for entire deployment-to-operation lifecycle of software, hardware, networks and hybrid IT installations.
- h. 'DC' means Data Centre at Raipur
 - i. 'DR' means Disaster Recovery Centre at Bilaspur
- j. 'CSPDCL' means Chhattisgarh State Power Distribution Company Ltd &/or their successors and permitted assigns. For the purpose of this document, CSPDCL also refers to any or all the 3 Power Companies.
- k. 'Solution' / 'Project' means to provide services for renewal of support (AMC/ATS) and deployment of new cyber security products, as desired in this Tender document.

I.

3. Project Objective

The offers are invited for Deployment of Gateway and Network Security as per specified in Annexure-3 of this RFP.

4. Eligibility Criteria for Bidders (Pre-Qualification Requirements)

Bidder should meet **all** the following requirements in order to be eligible to compete for the award of the tendered work. CSPDCL reserves the right to contact, verify information, references etc, and submitted by the Bidder without any further reference to the bidder.

SN	Bidder's Eligibility Requirements (PQR)	Required Documents
1	Bidder should be a Company registered in India under the Indian Companies Act 1956 / 2013 or a Partnership Firm registered in India under the Partnership Act 1932 or latest.	Certificate of Incorporation / Relevant documentary evidence to be attached in Techno-Commercial Bid. (Self-Attested*)
2	Bidder should have implemented at least one IT Infrastructure project costing not less than Rs. 8 Crores, during last three financial years from the date of opening the bid. Further, in the project mentioned above - atleast one of the following Products / technologies must have been implemented in a Central / State PSU or Govt. Organization or BFSI or any Power Sector (Generation, Transmission or Distribution) a. NextGen Firewall b. Network Access Control	Necessary Purchase order / LOI / Contract along with the completion/installation Certificate for project as proof of services provided Copies of orders / Agreement to be enclosed in the Techno-Commercial bid. (Self-Attested*)
3	Bidder should be authorized system integrator / implementation partner of the offered OEM Product(s) for sale, support, and services	MAF / Letter for all the offered products from the OEMs to be attached in the Techno-Commercial Bid. (Self-Attested*)
4	Minimum Average Annual Turnover (MAAT) of the Bidder should be not less than <u>Rs. 15 Crores</u> during last 3 financial years, i.e. 2022-23, 2023-24 and 2024-25.	Audited Annual Financial Statements for the FY i.e. 2022-23, 2023-24 and 2024-25 to be submitted by the Bidder. (Self-Attested*)
5	Net Worth should be positive for the each of the last three audited Financial Years. <i>'Net-worth' will consist of 'paid up equity capital, free reserves, balance in share premium account and capital reserves representing surplus arising out of sale proceeds of assets but not reserves created by revaluation of assets' adjusted for 'accumulated loss balance, book value of intangible assets and Deferred Revenue Expenditure, if any'.</i>	Audited Annual Financial Statements for the FY 2022-23, 2023-24 and 2024-25 to be submitted by the Bidder. (Self-Attested*) A Certificate (in original) of CA showing positive net worth of the bidder for the specified years shall also be submitted.

Deployment of Gateway and Network Security

6	Bidder should have valid ISO 27001: 2013 or latest certificate as on the date of the opening of the bid.	Copy of valid ISO certification from an authorized certifying body. <i>(Self-Attested*)</i>
7	Any Sum of Money due to CSPDCL on the date of opening of tender should have been paid/settled in full prior to the date of opening of tender. Price bids of bidders not complying with this requirement shall not be opened.	Self-Declaration to be submitted by the Bidder as per the Schedule-7 of RFP.
8	Bidder should not be debarred / blacklisted by the State Gov. / Central Govt. / State PSU / Central PSU / SEB / Power Utility as on the date of opening of tender.	Self-Declaration to be submitted by the Bidder as per the Schedule-8 of RFP.
9	Pre-Contract Integrity Pact enclosed as per tender document for signature of bidder and execution.	Proforma enclosed as Schedule-9 shall be duly filled and signed by Bidder.
10	All the documents / statements / attachments / information submitted by the bidder as a proof of the qualifying requirements must be authentic / genuine/ correct and in case, any of the said documents/ statements / attachments / information is found to be false / fake / misleading, the bidder will be disqualified and action will be taken against the bidder as per relevant provisions of the tender.	Proforma enclosed as Schedule-10 shall be duly filled and signed by Bidder.

Please Note: - For the SNo. 2 of Eligibility Criteria / PQR

- a) To qualify the experience criteria - either the implementation of the Project should be completed; or, if it is in maintenance / support phase, it can be on-going / completed.
- b) More than one order (i.e. multiple orders) against one tender shall be treated as one order.
- c) Order copy pertaining to Bidder's own or its subsidiary (in-house implementation) shall not be considered for evaluation.

"Bidder must possess and qualify all the PQR / Eligibility Criteria as mentioned above. Consortium bidding is not allowed. CSPDCL reserves right to verify information, references relevant data/date, experience, etc. as submitted by the Bidder without any further reference to the bidder."

Each Bidder shall be able to quote one single bid only else all his bids would be rejected. Please note that merely sale / purchase or download of document by any Bidder does not qualify him to be eligible Bidder. Price bid of the Bidder shall not be opened even after submission of tender documents along with the EMD, if the Bidder does not meet all the aforesaid eligibility criteria.

5. Broad Scope and Extent of the Work

The broad scope of work proposed under the instant proposal is Deployment of the below Gateway & Network Security Products: -

- 1) Next-Gen Firewall with three year support
- 2) Network Access Control & Network Security for 7000 IPs with three year support

Please refer Annexure-3 & 4 for detailed scope of work and Technical specification of security products required under this RFP.

6. Tender Document Fee & EMD

a. Tender Document Fee

1. Bidder has to submit Rs. Five thousand (Rs. 5,000 which is inclusive of GST @ 18%) towards Tender Document Fee online through payment gateway via e-bidding portal and money receipt paid online through e-bidding portal for tender document should be uploaded in the portal".
2. Tender document can also be downloaded from official website of CSPDCL-[www.cspc.co.in/cspdcl/tender/tendernotices/central office](http://www.cspc.co.in/cspdcl/tender/tendernotices/central%20office)
3. It is obligatory to submit Fee/Cost towards Tender Document; even though, it is downloaded from CSPDCL website or e-bidding portal, as mentioned in Factsheet or Annexure-1. Hardcopy of Tender document shall NOT be provided by CSPDCL.
4. No Bid shall be accepted without Tender Document Fee and shall be rejected, unless otherwise exempted by the CSPDCL.
5. Tender Document Fee is non-refundable.

b. Earnest Money Deposit (EMD)

1. Bidder should submit an Earnest Money Deposit (EMD) of **Rs. Five Lakhs (Rs. 5.00 Lakhs Only)** by online mode through payment gateway via e-bidding portal and **money receipt paid online through e-bidding portal for EMD should be uploaded in the portal**.
2. The bidder not accompanied with online money receipt of earnest money or accompanied with inadequate earnest money will summarily be rejected, unless otherwise exempted by the CSPDCL.
3. No Bid shall be accepted without EMD and shall be rejected, unless otherwise exempted by the CSPDCL.
4. EMD will not carry any interest.
5. EMD will be forfeited by CSPDCL if,
 - a) It is being discovered that any of the documents submitted by the Bidder are falsified, forged or intended to deceive.
 - b) Bidder withdraws its bid during the period of bid validity.
 - c) Bidder withdraws his tender after processing but before acceptance of purchase order to be issued by CSPDCL.
 - d) Selected Bidder being awarded the work and failing to execute the work awarded or failing to submit the Security Deposit cum Performance Guarantee

6. EMD will be refunded as under -
 - a) Earnest Money of selected Bidder on whom order is placed shall be released on acceptance of unconditional Security Deposit (SD) cum Performance Guarantee for 10% of the order value in form of Demand Draft or an irrevocable Performance Bank Guarantee (valid till the end of contract period) and execution of agreement.
 - b) Earnest Money for the technically & commercially qualified Bidders shall be retained till final acceptance of tender / purchase order by the Bidder and in respect of others, it shall be refunded immediately.
7. The following are exempted from payment of EMD-
 - a) SSI Units of Chhattisgarh Permanently registered with DIC / Ancillary units of CSPDCL - Registration should be specifically for the items quoted in the tender (for both supply & services components) and valid on the date of opening of tender.
 - b) Small Scale Units registered with NSIC: -In case of Small Scale Units permanently registered with NSIC, their registration certificates should be valid for the item mentioned on tender (for both supply & services components) on due date of opening of Techno-Commercial bid entitled for exemption from EMD. (Renewal / amendment of certificate should not be more than 3 years old from the due date of opening of tender).
 - c) In case of Medium / Large Scale Manufacturing Units located in Chhattisgarh (other than SSI / Ancillary Units to CSPDCL and Govt. undertaking), the EMD shall be accepted @ 50% (half) of the rates prescribed above. Here also, Permanent Registration is a must in respect of specified item in this RFP.
 - d) Fully owned State Govt. Units, if 100% shares are held by the State Govt. concerned for which documentary evidence must be furnished with the offer / Central Govt. Manufacturing Units.
 - e) The photocopy of the NSIC / SSI Registration Certificate for the tendered items duly attested by G.M. / Manager, DIC of the Area, shall be furnished with the offer. In case of unattested copy, the original certificate should be produced at the time of tender opening for verification.
 - f) All the SSI / NSIC Units should quote / offer only to the extent they are registered for respective items with the SSI / NSIC organization. The certificate should be valid and duly renewed as the case may be.
 - g) The Bidder, who comes under above categories, should furnish documentary evidence with the offer failing which his offer, shall be rejected.

Bidders in their own interest are encouraged to submit scanned copy of NSIC certificate prior to due date of opening of bid, so as to ensure that NSIC Certificate can be considered or not.

7. Pre-Bid & Corrigendum/Amendment**a. Pre-Bid Queries**

1. Bidders should carefully examine and understand the scope of work, terms & conditions, and may seek clarifications, if required.
2. Pre-Bid Schedule is provided in the Fact-Sheet and Bidders should strictly adhere to the same. It will be done through **online mode**.
3. No separate intimation would be conveyed in this regard, except if the Pre-Bid is either preponed, postponed or cancelled.
4. CSPDCL shall not be responsible to ensure the Bidder's queries have been received timely by them.
5. CSPDCL reserves right not to respond to any Pre-Bid Queries received after the scheduled date & time.
6. Bidders should submit their pre-bid queries through e-mail (eitc.isc@cspc.co.in) in excel & pdf file in the following format:

SN	Tender Document Ref Page No. & Clause No.	Content of Tender requiring clarifications	Bidder's Query
1.			
2.			
n.			

7. No verbal or individual communication shall be entertained.

b. Pre-Bid Meeting:

1. Clarifications, if any; can also be sought in the Pre-Bid meeting.
2. Bidders, who are eligible as per the Eligibility Criteria (PQR), shall only be allowed to participate in the Online Pre-Bid Meeting.
3. Meeting link shall be shared to the respective e-mail ids of eligible bidders who are desirous to attend the pre-bid meeting.
4. CSPDCL reserves right not to respond to any **impromptu** queries in the pre-bid meeting.

c. Pre-Bid Clarifications and Issue of Corrigendum/Amendment:

1. CSPDCL shall provide timely response to pre-bid queries.
2. CSPDCL neither undertakes the completeness of the response(s), nor to answer all the pre-bid queries which have been raised.
3. CSPDCL shall consolidate all the written queries and pre-bid clarifications shall be issued, accordingly.
4. Further, at any time prior to the last date for receipt of bids, CSPDCL may, for any reason, whether at its own initiative or in response to a clarification requested by a prospective Bidder, modify tender document by issuing corrigendum or amendment.
5. Pre-bid Clarifications and corrigendum / amendment (if any) shall be made available on CSPDCL website & e-bidding portal.
6. No individual correspondence shall be made in this regard.
7. Pre-bid clarification and any other clarification(s) / amendment(s) /corrigendum(s) furnished thereof shall be deemed to be incorporated and thus become part and parcel of the Tender; thereby it will be binding on the Bidders.

8. In order to provide prospective Bidders reasonable time for taking the pre-bid clarification, corrigendum / amendment into account; CSPDCL may, at its discretion, extend the last date for submission of the Bids.

8. Preparation of Bids

- a. Tender can be downloaded from CSPDCL web site or e-bidding portal.
- b. Bids & supporting documentation should be prepared in English.
- c. Bidder must digitally sign bid documents.
- d. **Authorized Signatory for submission of Bids:** Bids submitted on behalf of companies registered with the Indian Companies Act, for the time being in force, shall be signed by persons duly authorized to submit the tender on behalf of the Company and shall be accompanied by Certified true copies of the resolutions, extracts of Articles of Association, special or general Power of Attorney etc. to show clearly the title, authority and designation of persons signing the Bid on behalf of the Company.
- e. **Techno-Commercial Bid should be submitted online only in E-bidding** portal & contain the technical solution to meet the requirement of the CSPDCL and should be submitted strictly in conformity with the desired solution / scope of work, as envisaged by CSPDCL in this tender document.
- f. Infrastructure requirements including power requirements etc. necessary for successful installation and smooth operation should be specified in the technical literatures.
- g. Bidder shall bear all costs associated with the preparation and submission of tender, including cost of any presentation that may be made for the purposes of clarification of the bid. CSPDCL would in no case be responsible for refund or be liable for such costs.
- h. Bidder should carefully examine tender terms & conditions, including all annexures, schedules specified in this tender document.
- i. Failure to furnish complete information as required in the tender document may result in disqualification of the bid.
- j. Two separate amounts towards Tender Document Fee & EMD are required to be submitted.
- k. Bids should be submitted **online in E-bidding portal** and shall be two parts : -

Part-1	Techno-Commercial Bid	i. Money Receipt towards Tender Doc. Fee; ii. Money Receipt towards EMD; iii. Letter intimating Authorized Signatory All Schedules (except the Price Bid); iv. All documentary evidences as required in support of the Schedules and Eligibility Criteria (PQR); v. All Certificates and Credentials; vi. Any other relevant details, if so required.
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		<u>Note: Please do not upload RFP copy or any other documents, which is not relevant for Bid, Bidder has to upload Annexure-4.</u>
Part-2	Price Bid	i. Unit Prices should preferably be rounded-off to zero (to avoid calculation intricacies); ii. Price Bid should be input in the Price Bid tab, scanned copy of Price Bid should NOT be uploaded.

9. **Submission of Bids**

a. Tendering Process:

This Tender shall be processed in **"Online mode only"**. Bidders should carefully go through Annexure-1, "Specific Instructions for e-bidding".

b. ONLINE Submission:

Following documents should be submitted ONLINE on SAP SRM e-bidding portal -

1. Tender Fee and EMD (Earnest Money Deposit) shall be paid online through payment gateway via e-bidding portal. EMD exemption document has to be uploaded, if any;
2. Upload duly filled, signed, stamped & scanned copy of Schedules' 1 to 10; but, *EXCEPT* Schedule 11 (*PRICE BID Schedule*);
3. Online filling of the Questionnaire (Checklist);
4. **Price bid – To be entered directly in the e-bidding System in Price Tab**

✓ It is to be carefully noted that Price Bid should be submitted through online procedure only; i.e. - rates are to be filled directly in item tab in e-bidding SAP-SRM e-bidding portal

✗ Scanned copy of price bid should **NOT** be uploaded / attached in e-bidding portal.

Note: Bidders are requested to go through Annexure-2 for "Submission of Bid documents".

10. **Opening of Bids**

- a. Bids shall be **opened online** as per due date of Bid opening schedule and address provided in the "Fact Sheet"; on the due date and time as notified later, in the presence of the Bidders or their authorized Representatives, if they wish to witness.
- b. If the due date of submission / opening of tender document are declared a holiday by the Central / State Government or Local Administration, it will automatically get shifted to the next working day, for which no prior intimation shall be given.
- c. Tender opening shall be continued on subsequent days, in case, the opening of all tenders is not completed on the day of opening.
- d. In case the opening of all the bids could not be opened on the scheduled date/time as notified, because of some technical constraints of the system on the day of opening of bid; CSPDCL reserves right alter,

extend the due date / time of opening, if so desires without assigning any reason thereof.

- e. Intimation of extension of due date of bid submission/opening shall be provided at CSPDCL website & e-bidding portal. Bidders are therefore requested to keep track of the same.
- f. CSPDCL reserves right to disclose the content(s) of the Techno-Commercial bid in full or part.
- g. Date of opening of the Price bid shall be intimated separately, only to the eligible Bidders, through e-mail / SAP e-bidding portal.

11. Sequence of Opening of Bids

On the due date and time as notified;

- a. First the Techno-commercial part in e-bidding portal (ONLINE) shall be opened & scanned copy of Tender Document Fee, EMD, Questionnaire (Checklist), etc. shall be verified.
- b. Price Bid shall be opened on any subsequent date, to be notified later; only for the short-listed Bidders who are eligible and are qualified in the Techno-Commercial Bid.

12. Evaluation of Bids

a. Initial Scrutiny & Bid Rejection

- 1. Initial Bid scrutiny will be held and incomplete bids, conditional bids are liable for rejection.
- 2. Multiple bids from a single Bidder would be rejected.
- 3. Bids not conforming to Tender Terms & Conditions as given below shall be treated as non-responsive; if bid is -
 - i. submitted without Tender Document Fee or EMD;
 - ii. submitted is not as specified in the tender;
 - iii. received without the Letter of Authorization;
 - iv. found suppression of details;
 - v. incomplete, subjective, conditional or partial offers submitted;
 - vi. received through e-mail.
 - vii. found incomplete including non-submission of documents;
 - viii. evasive or contains incorrect information;

b. Techno-Commercial Bid Evaluation

- 1. Techno-Commercial Bid will be evaluated for fulfilment of Eligibility Criteria / PQR Conditions.
- 2. Only the Bids fulfilling the Eligibility Criteria / PQR, shall be evaluated further to conform suitability of Techno-Commercial Terms & Conditions (including Payment terms, Penalty, Security Deposit, Delivery Schedule, and Validity Period of Bid, etc., along with desired the Technical solution).
- 3. Bids in accordance with the Tender requirement shall only be eligible for opening of their Price Bid.

c. Price Bid Evaluation

Price Bids shall be evaluated to ascertain the lowest bid in the interest of CSPDCL with the following consideration: -

1. Loading shall be done for the items where prices are not quoted by the Bidders shall be done.
2. In such cases, the loading shall be done at highest prices quoted among the participated Bidders but while ordering, lowest price among the Bidders will be offered.
3. Price Bid Comparison shall be done on Grand Total Amount (Total project Cost).

d. General Conditions

1. CSPDCL does not bind itself to accept the lowest or any Bid and reserves the right to reject any or all bids at any point of time, prior to the issuance of purchase order without assigning any reasons, whatsoever.
2. CSPDCL shall not incur any liability to the affected Bidder(s) on account of bid rejection.
3. CSPDCL shall not be obliged to inform the affected Bidder(s) regarding the ground for rejection.
4. CSPDCL also reserves the right to re-tender.
5. CSPDCL decision shall be final & should be acceptable to Bidder.

13. EXTREMELY IMPORTANT - Bidders to note to avoid bid rejection

It will be the sole responsibility of the bidder to make sure that all documents required as per tender are submitted along with bid on or before due date of tender. The bid submission date is cut-off date for submission of all the documents required as per tender and every bidder must adhere to this deadline.

However, if any shortcoming is observed during scrutiny of Techno-Commercial bid, CSPDCL reserves the right to seek require clarifications / documents from bidder by giving them ONLY one chance to submit required clarifications / documents / confirmations within specified time limit.

If a bidder has quoted "NIL" deviation in Schedule-4 (Techno-Commercial Deviation) this will have an overriding effect on any other conditions noted as deviation elsewhere in the bid.

14. Mistakes in Bid

In case Bidder submits contradictory statement in the Technical & Commercial Bid, CSPDCL reserves right to interpret / take that statement into consideration, in the interest of CSPDCL.

15. Fixed / Firm Prices & Bid Currency

Bidders are required to quote a Fixed / Firm Price bid in their Price Bid. Prices should be quoted in Indian Rupees (INR).

16. Suppression of facts and misleading / false information

- a. Bids submitted having any of the documents that are falsified, forged, misleading or intended to deceive will be rejected. The Bidder may also be debarred from participation in future tendering process.
- b. During the Bid evaluation, if any suppression or misrepresentation of information is brought to the notice of CSPDCL; then, CSPDCL shall have the right to reject the Bid and if after selection, CSPDCL would terminate the order as the case may be, without any compensation to the Bidder and the EMD / Security Deposit as the case may be, shall be forfeited.
- c. Bidders should note that any figures in the proof documents submitted by the Bidders for proving their eligibility is found suppressed or erased, CSPDCL shall have the right to seek the correct facts and figures or reject such bids.
- d. It is up to the Bidder to submit the full copies of the proof documents to meet out the criteria. Otherwise, CSPDCL may not consider them.
- e. Copies of documents should be submitted with bid in order to prove the Bidder's experience & capacity to undertake the project

17. Ambiguities in Bid conditions

In case of ambiguous or self-contradictory terms / conditions mentioned in the bid, interpretations as may be advantageous to the CSPDCL may be taken without any reference to the Bidder.

18. Alternate Bid

Bid should be submitted as per intent of tender documents, as alternative offers are liable to be rejected.

19. Delayed / Late Bid

CSPDCL shall not be responsible for any technical glitches at the Bidder end, resulting in failure of online submission of the bids on due date/time. No extension in time shall be granted on such grounds.

20. Return of Bids

Bids once submitted shall be the property of CSPDCL and shall not be returned to the Bidder in future.

21. Canvassing of Bids

Bids shall be deemed to be under consideration, after opening of bid online, till placement of order. During this period, the Bidders or their authorized representatives or other interested parties are advised strongly, in their own interest, to refrain from contacting by any means any of the CSPDCL's personnel or representative, on matters relating under study. Canvassing of any kind will not only invite disqualification but also will debar the Bidder from future participation in tender process.

22. Pre-Contract Integrity Pact

As per directives of Government of Chhattisgarh vide Circular No. 243/vi/ni/4/2013 dated 06-Jul-2013, prescribed format for Pre-Contract Integrity Pact is enclosed as Schedule-09 with tender document for signature of Bidder and execution.

23. Alterations / Corrections in Bid *(Post Bid Opening)*

No alternations in the tender document after opening of the bids will be permitted. Bidder will not be permitted to change the substance of the tender after opening of tender, on interpretation / improper understanding grounds.

24. Amendment in Specifications / Requirement *(Pre Order)*

CSPDCL reserves right to revise, modify or amend any terms & conditions, specification, drawing, prior to the date notified for opening of tender, such revision / amendment, if any, will be communicated to all the Bidders as Amendment / Addendum / Corrigendum / Pre-bid Clarifications, etc.; whereas, after opening of the Techno-Commercial bids, CSPDCL reserves right to obtain revised price bids from the Bidders with regard to such changes, if any.

25. Variations / Additions / Omissions *(Post Order)*

CSPDCL reserves the right to alter, amend, omit, or otherwise vary the quantum of work, by notice in writing to Bidder. Bidder would carry out such variation in accordance with the rates specified in the contract, so far as these may apply; and, where such rates are not available, the CSPDCL and the bidder would mutually agree to the same.

26. Tender Compliance

- a. Bidders are encouraged to study all the instructions, Annexures, Schedules, Terms & conditions, requirements and other information in the tender document carefully.
- b. Online submission of the bid / proposal shall be deemed to have been done after careful study and examination of the tender document with full understanding of its implications.
- c. Failure to comply with the requirements of this clause may render the bid non-compliant and may be rejected.
- d. Bidders must comply with all requirements as set out within the tender, including all the supporting documentations specified in this tender.
- e. Bid which is incomplete or obscure is liable for rejection.

27. Deviations from vital Terms & Conditions

Offers with deviations in the terms of payment, liquidated damages, security deposit and performance guarantee are liable to be rejected.

28. Validity of Bids

Entire Bid (Prices, Techno-Commercial Terms & Conditions as offered by the Bidder) should be valid for a minimum period of **180 days** from the date of opening of the bid; else Bid is liable to be rejected.

29. Acceptance of Part / Whole Bid – Rights thereof

CSPDCL makes no commitments, express or implied, that this tender process shall result in any business transaction with any Bidder. No commitment of any kind, contractual or otherwise shall exist unless and until a formal written contract has been executed. CSPDCL reserves right to

- a. terminate Tender process at any time without assigning any reason whatsoever;
- b. accept / reject wholly or partly bids without assigning any reason whatsoever;
- c. negotiate only with the technically suitable Bidder;
- d. Make no correspondence with Bidder regarding above.

30. Security Deposit cum Performance Guarantee

- a. On acceptance of Order, the selected Bidder will have to deposit an amount of 10% of the respective total order value towards Security Deposit, either in form of MICR Demand Draft or Bank Guarantee within 30 days from date of issue of order failing which the order is likely to be cancelled. Thereafter, CSPDCL reserves right to negotiate with next eligible Bidder.
- b. MICR Demand draft is to be drawn in favour of Manager (CAU), CSPDCL, payable at Raipur from any Nationalized/Scheduled Bank.
- c. Bank Guarantee In lieu of Demand draft can be submitted from any Nationalized / Scheduled Bank strictly as per CSPDCL's proforma (to be supplied along with the order) valid sufficiently to cover the contract period and additional six months for claim lodge period.
- d. CSPDCL shall forfeit the security deposit in event of non-execution or part execution of the order, besides invoking the Penalty Clause.
- e. Security Deposit cum Performance Guarantee shall be returned to the Contractor only after due and faithful performance of the order as per terms and conditions of the order and on expiry of contract period, provided there are no claims outstanding to be recovered against the Bidder, including downtime penalties.
- f. No interest will be paid by the CSPDCL on Security Deposit cum Performance Guarantee furnished by the Contractor.

31. Prices

- a. Price shall include all charges, applicable taxes, etc. except GST which will be payable, extra, as per actuals.
- b. Prices should be quoted in Indian Rupees only.
- c. Prices should be FIRM and not subject to any price escalation.
- d. No escalation in price quoted is permitted for any reason whatsoever. Prices quoted must be firm till the complete execution of the contract.

Any benefit of downward movement of prices in future for similar product / services should be passed on to CSPDCL.

- e. Prices should be quoted as per the Price Bid Format.
- f. Prices should be submitted Online directly in SAP e-bidding Portal.

32. **Taxes & Duties**

- a. **GST:** Bidders should clearly specify the rate of Goods & Service Tax (GST) applicable / leviable / payable under the prevailing Rules & Regulations at the time of submission of the Bid.
- b. **Any other applicable Tax:** Bidders should also specify any other Tax, if applicable, and its prevailing rate, at the time of submission of the Bid; else, it shall be presumed that no other taxes are applicable at the time of submission of bid.
- c. **Change in rate of Tax:** Should there be any increase or decrease in rate of GST or any other applicable Tax during the contract period, the same shall be payable as per the then prevailing rate (i.e. - as per actuals) at the time of processing invoices/payment.
- d. **New Tax/Levy Introduce:** Should there be any new tax/levy introduced by Govt. tax rules & regulations, the same shall be payable as per the then applicable tax at the then prevailing rate (i.e. - as per actuals) at the time of processing invoices/payment.
- e. **TDS:** Necessary Tax shall be deducted at source as per the then prevailing Govt. Tax rules & regulations or issued time-to-time.
- f. **GST Payable:** GST shall be paid by CSPDCL as applicable at the time of submission of invoice(s). The firm is required to furnish the GST certificate as per the following: -
 - i. Certified that the transaction on which the GST has been claimed has been/will be included in the return submitted/to be submitted to the taxation authority for the assessment of GST and amount claimed from CSPDCL has been/shall be paid to Tax Authorities.
 - ii. Certified that services/goods on which GST has been charged have not been exempted under State/Central GST act or the rules made their under and charges on a/c of GST on these service are correct under provision of relevant act or rules made thereunder.
 - iii. Certified that we shall indemnify the "CSPDCL" in case it is found at a later stage that wrong or incorrect payment had been made on a/c of GST to be paid by us.
 - iv. Certified that we are registered dealer under Central/State GST Act and our GSTIN No is _____
 - v. This certificate has been rendered against order no. __, dated __.
- g. **Vital Numbers of CSPDCL:** CIN, PAN & GST Registration Number of CSPDCL are provided in the Fact Sheet same is mentioned as follows: -

CIN	U40108CT2003SGC015822
PAN	AADCC6047K
GSTN	22AADCC6047K1ZR

Pl. Note: Bidders indicating nil or concessional rate of GST (if any) in their tenders will have to absorb GST up to the full rate as applicable at the time of tendering & invoicing.

33. Payment Terms

The Payment of bills shall be regulated in the following manner to facilitate Bidder for timely completion of the work.

Supply Part – Delivery of Software Licenses/Hardware Subsequent to the completion of delivery & acceptance of equipment as per clause 46, the Bidder shall submit the bills.

- i) **Supply Part - 80% payment** towards the value of Software Licenses/hardware supplied & the same duly verified by the office of C.E. (EITC), at accepted rates shall be paid generally within a period of 30 days from the date of presentation of Bills.

The balance **20% payment** shall be released after successful installation, as envisaged under the scope of the project.

- ii) **Services Part–Installation, Testing & Commissioning of devices including Training**

The bidder shall present bills for Services part, after installation, testing and successful commissioning of the works, as envisaged under the scope of this project and it's taking over by CSPDCL.

100% payment towards completed works, duly verified by the office of C.E. (EITC) after submission of Project Sign off, shall be paid generally within a period of 30 days from the date of presentation of Bills.

The bills shall be raised to EITC, CSPDCL; by the Bidder. The payment shall be made against the – "**Project Sign off**". The Payments shall be processed based on Bills submitted along with the signed Project Sign off.

- iii) No interest shall be payable in case of delay in payment.

34. Payment Procedure

- Bills should be submitted in four copies (including one original) to-
The Chief Engineer (EITC),
Energy InfoTech Centre, CSPDCL,
Block No-8, Dangania, Raipur.
- Following documents needs to be submitted in the O/o C.E (EITC) -
 - ❖ Invoice in Quadruplicate
 - ❖ Delivery Challan
 - ❖ Project Sign off.
- Original bills should be marked "ORIGINAL".
- After verification, original + 2 copies of bills shall be forwarded to - The Manager (CAU), CSPDCL; for the payment.
- Payment after deduction of penalty, if any; shall be made generally within a period of 30 days from the date of submission of bills.
- Prices shall remain Firm and shall not be subjected to any upward revision of prices.

- Payment shall be electronically credited to the designated account number provided to CSPDCL after deducting applicable TDS, if any.
- No interest shall be payable in case of delay in payment.

35. Consignee / Electronic License Delivery

All the licenses shall be electronically delivered electronically at e-mail id - **license.admin@cspc.co.in**

36. Service Delivery / Completion Period

- ❖ Time is the essence of contract and supply / delivery and installation / erection work should be completed within the stipulated time period.
- ❖ SI has to submit the acceptance of the order within 10 days from the date of issue of the order. CSPDCL reserves the right to consider the late acceptance of the order, if any, at its discretion.
- ❖ Project Completion shall be deemed complete after end-to-end delivery of required renewal, Licenses, its installation, configuration, parameterization, customization, implementation, integration, support and maintenance of all the solutions at central site.
- ❖ Delivery of licenses & hardware should be made within the stipulated period **8 weeks** from the date of placing the order.
- ❖ However, the entire work should be completed within the stipulated time **26 weeks** from the date of placing the order.

37. Contract Agreement

Contract Agreement shall be signed between CSPDCL & successful bidder within **4 weeks** from date of placing the order.

38. Contract Period

- a. Contract Period shall be **42 months from the date of placing Order.** Product-wise support validity date is mentioned in the Annexure-3.
- b. Contract period can be extended / renewed for further by mutual agreement of CSPDCL & Bidder on the same terms and conditions or on mutually agreed terms and conditions.

39. Penalty

- a. The time and the date of installation as stipulated in the order shall be deemed the essence of the Contract. In case of delay in execution or non-execution of the order the CSPDCL reserves right to recover from the Bidder as agreed towards penalty.
- b. If supply or installation is not made within scheduled time of the Order (Service Delivery Period), 'penalty' will be imposed at the rate of half percent (1/2 %) of the total order value for each calendar week of delay or part thereof subject to a maximum of 10% of order value and will be deducted from the bill amount.
- c. If the Bidder fails to complete the due performance of the contract in accordance to the specification and conditions of the bid document, CSPDCL reserves the right either to cancel the order placed on the Bidder. CSPDCL reserves the right to forfeit Security Deposit for non-performance.

40. Extension of Time

- a. If the commencement of contract or completion of work is delayed due to reasons beyond the control of the Bidder, the same shall be requested to CSPDCL in writing for an extension of time.
- b. CSPDCL on receipt of such request may agree to extend, as may be reasonable, but without prejudice to other terms and conditions of the contract.

41. Extension of Order

CSPDCL reserves the rights to place an extension order and to negotiate directly with the bidder for the additional requirement to the maximum 50% of the contract value, on the same rates, terms and conditions within twelve months from the date of order.

CSPDCL reserves the rights to negotiate directly with the Contractor for next phase, in case there is any expansion to be done later.

42. Force Majeure

Force Majeure is herein defined as any cause, which is beyond the control of the bidder or CSPDCL as the case may be which they could not foresee or with a reasonable amount of diligence could not have foreseen and which substantially affect the performance of the Contract, such as -

- a. Natural phenomena, including but not limited to floods, droughts, earthquakes, Pandemics and epidemics.
- b. Act of any Government Authority, including but not limited to war, declared or undeclared, quarantines, embargoes, licensing control or production or distribution restrictions.
- c. Accident and disruptions such as - fires, explosions, break-down of essential machinery or equipment's etc.
- d. Strikes, Lockouts continuing for more than three weeks. Failure or delay in the bidder's source of supply due to Force Majeure causes enumerated above; provided he produces documentary evidence to show that there were no other alternative sources of supply available to him.

43. Relationship between CSPDCL & Bidder

- a. Nothing in the contract shall constitute any fiduciary relationship between the CSPDCL and Bidder / Bidder's Team or any relationship of employer-employee, principal and agent, or partnership, between the CSPDCL and Bidder.
- b. No Party has any authority to bind the other Party in any manner whatsoever except as agreed under the terms of the contract.
- c. CSPDCL has no obligations to the Bidder's team except as agreed under the terms of the contract.

44. Defect liability

In case any of any equipment covered under AMC during the contract period are found to be defective due to workmanship and / or not in accordance with the requirement, and / or do not achieve the guaranteed performance as specified herein, the bidder shall replace / make good such defective supplies / services at no extra cost to CSPDCL without prejudice to the other remedies as may be available to CSPDCL under the contract.

45. Adherence to safety procedures, rules regulations and restriction

- a. Selected Bidder shall comply with the provision of all Applicable Laws, rules, regulations and notifications issued from time-to-time.
- b. All safety and labour and industrial laws enforced by statutory agencies and by CSPDCL shall be applicable in the performance of this Contract and Selected Bidder shall abide by these laws.
- c. Selected Bidder shall indemnify and keep indemnified and hold harmless to CSPDCL for any loss, damage, claims, costs, charges, expenses, etc. arising out of and/or suffered on account to factions, litigations, proceedings, suits, arising out of breach of the above Applicable Laws. Selected Bidder shall take all measures necessary or proper to protect the personnel, work and facilities and shall observe all reasonable safety rules and instructions.
- d. Selected Bidder shall report promptly any evidence, which may indicate or is likely to lead to an abnormal situation and shall take all necessary emergency control steps to avoid such abnormal situations.
- e. Selected Bidder shall also adhere to all security requirement / regulations of CSPDCL during the execution of the work / Services.

46. Publicity

The Selected Bidder shall not make or permit to be made a public announcement or media release about any aspect of this Contract unless the CSPDCL first gives the Selected Bidder its written consent.

47. Defence of suits

If any action in court is brought against the CSPDCL / Selected Bidder for failure or neglect on the part of the Selected Bidder to perform any acts, matters, covenants or things under the contract or for the damage or injury caused by the alleged omission of neglect on the part of the contractor, his agents, representatives or sub-contractors, workmen supplier or employees, the Selected Bidder in all such cases shall indemnify and keep CSPDCL harmless from all costs, damages, expenses or decrees arising out of such action.

48. Delays in the performance of Bidder's obligation

Any delay by the bidder in the performance of its delivery obligations shall render the bidder liable to any or all of the following sanctions–forfeiture of its performance security deposit, imposition of liquidated damages and / or termination of the order for default.

49. Conflict of interest

The Bidder shall disclose to CSPDCL in writing, all actual and potential conflicts of interest that exist, arise or may arise (either for the Bidder or the Bidder's team) in the course of performing the Services as soon as practical after it becomes aware of that conflict.

50. Recoveries for Liabilities against Other Contracts

Any amount recoverable from the bidder against earlier contracts with the CSPDCL will be adjusted from payment due against the contract that may be awarded under this tender specification.

51. Punitive Action

In case of any of the following default(s) by the Selected Bidder, such as:-

- i. unsatisfactory services;
- ii. poor workmanship;
- iii. instances of fraud or cheating;
- iv. submission of fake documents & information;
- v. violation/breach of terms and conditions of the contract; etc.,

CSPDCL shall take any one or combination of the Punitive actions given below depending on the extent and seriousness of the default committed, such as: -

- a. debar / blacklist the firm for future business with the CSPDCL for a specified period and circulate it among all SEBs/Power Companies;
- b. cancel the contract partially or fully as outlined in penalty clause;
- c. Impose a suitable penalty as deemed fit, on account of above irregularities/default or financial loss caused to CSPDCL by bidder.

52. Applicable Law & Jurisdiction of Court

Contract with the bidder shall be governed in accordance with the Laws of India for the time being enforced and will be subject to the exclusive jurisdiction of Courts at Raipur (with the exclusion of all other Courts).

Here, "Applicable Laws" means any statute, law, regulation, ordinance, rule, judgment, order, decree, bye-law, approval of any authority, directive, guideline, policy, requirement or other governmental restriction or any similar form of decision of or determination by, or any interpretation having the force of law of any of the foregoing by any authority having jurisdiction over the matter in question, whether in effect as of the date of this RFP or at any time hereafter.

53. Notices

Notice or other communications given or required to be given under the contract shall be in writing. They can be hand-delivered with acknowledgement thereof, or transmitted by a pre-paid registered post, or by a recognized courier, or by a facsimile. If such notice is sent by facsimile, a confirmation copy shall be sent by pre-paid registered post or by recognized courier within 7 days of the transmission by facsimile.

54. Limitations of Liability

Bidder's aggregate liability under the contract shall be limited to a maximum of the Contract value. This limit shall not apply to third party claims for 1) IP infringement indemnity; 2) bodily injury (including death) and damage to real property and tangible personal property caused by bidder's gross negligence. Bidder shall not in any event be liable for any indirect, consequential damage, or loss of profit, business, revenue, goodwill, anticipated saving or data, or third party claim except with respect to bodily injury (including death) and damage to real and tangible personal property for which bidder is legally liable. For the purpose of this section, Contract value at any given point of time, means the aggregate value of the purchase orders placed by CSPDCL on the bidder that gave rise to claim, under this tender.

55. Arbitration

- a. All dispute or differences whatsoever arising between the bidder and CSPDCL out of or in relation to the construction, meaning and operation or effect of the Contract, with the bidder, or breach thereof shall be settled amicably.
- b. If, however, the parties are not able to resolve dispute or difference aforementioned amicably, the same shall be settled by arbitration.
- c. Either party may give to the other, notice in writing, the existence of such question, dispute or difference, and the same shall be referred to the adjudication of two arbitrators, one to be nominated by the CSPDCL and the other to be nominated by the bidder.
- d. Venue of the arbitration shall be at Raipur, Chhattisgarh.

56. Cancellation of Order

CSPDCL may upon written notice of default, terminate contract in the circumstances detailed hereunder -

- a. If in the opinion of the CSPDCL, the Consultant Firm fails to deliver the services within the time specified or during the period for which extension has been granted.
- b. If in the opinion of the CSPDCL, the Consultant Firm fails to comply with any of the other provisions of this contract or services are found not in accordance with tender order.
- c. The Consultant Firm commits a breach of any of the terms and conditions of the bid.
- d. The Consultant Firm goes into liquidation voluntarily or otherwise.
- e. The progress regarding execution of the order accepted, by the Consultant Firm is found to be unsatisfactory.
- f. If deductions on account of Liquidated Damages exceeds more than 10% of the total contract price.

57. Termination

The Agreement / SLA can be terminated by either Party upon providing a written notice to the other Party of its intention to do so. However, CSPDCL may terminate this Contract by giving the Selected Bidder a prior and written notice indicating its intention to terminate the Contract under the following circumstances:

- a. **Termination for Default:** CSPDCL may, without prejudice to any other right or remedy for breach of Contract, by a written 30 days' notice of default sent to the Selected Bidder, may terminate the Contract in whole or in part, if the selected Bidder-
 - i. fails to deliver Related Services within the period specified in the Contract, or within any extension thereof granted by CSPDCL; or
 - ii. in the judgment of the CSPDCL has engaged in corrupt, fraudulent, collusive, or coercive practices in competing for or in executing the Contract; or
 - iii. has made any representation in the proposal which has later found to be false or misleading; or
 - iv. commits any breach of the Contract and fails to remedy or rectify the same within the period of two weeks (or such longer period as CSPDCL in its absolute discretion decide); or
 - v. ability to survive as an independent entity is threatened or is lost owing to any reason whatsoever, including inter-alia the filing of any bankruptcy proceedings against the Selected Bidder, any failure by the Selected Bidder to pay any of its dues to its creditors, the institution of any winding up proceedings against the Selected Bidder or the happening of any such events that are adverse to the commercial viability of the Selected Bidder.
- b. **Termination for Convenience:** Notwithstanding the provisions of the Contract and/or the Bid Documents CSPDCL, by written notice sent to the Selected Bidder, may terminate the Contract, in whole or in part, at any time for its convenience. The notice of termination shall specify that termination is for CSPDCL's convenience, the extent to which performance of the Selected Bidder under and in accordance with the Contract is terminated, and the date upon which such termination becomes effective.
- c. **Termination for Insolvency:** CSPDCL may at any time terminate the Contract by giving written notice to the Selected Bidder, without compensation to the Selected Bidder, if the Selected Bidder becomes bankrupt or otherwise insolvent, provided that such termination will not prejudice or affect any right of action or remedy which has accrued or will accrue thereafter to the CSPDCL.
- d. **Termination for non-performance and not meeting SLA:** CSPDCL will review the performance of bidder on quarterly basis and may exit from contract, if bidder will not provide satisfactory services as per SLA and uptime as per the contract. CSPDCL's decision in this regard will be final. CSPDCL will not bear any compensation for such exit, as they are due to non-performance of bidder.

58. Confidentiality

Bidder and/or the authorized OEM personnel shall not disclose any proprietary or confidential information relating to operations, services, or business of CSPDCL without the prior written consent of CSPDCL. The information, drawings, specifications and other related documents forming part of the "Contract" are property of CSPDCL and shall not be used for any other purpose, except for execution of the 'Contract'.

59. Non-Disclosure Agreement

The bidder shall execute Non-Disclosure Agreement (NDA). The bidder shall execute NDA without which payment will not be released in absence of above signed agreements. Bidder shall have to sign and abide by the terms of the Non-Disclosure Agreement (NDA). In case of any dispute regarding breach of confidentiality, the terms of NDA will supersede the confidentiality clauses of the RFP. However, till the execution of NDA, the confidentiality clause of RFP shall be applicable.

60. Information Security

- a. Bidder and its personnel shall not carry any written material, layout, diagrams, pen drives, hard disk, storage tapes or any other media out of CSPDCL premise without written permission from CSPDCL.
- b. Bidder personnel shall follow CSPDCL's information security policy and instructions in this behalf.
- c. Bidder acknowledges that CSPDCL's business data and other proprietary information or materials, whether developed by CSPDCL or being used by CSPDCL pursuant to a license agreement with a third party (the foregoing collectively referred to herein as "proprietary information") are confidential and proprietary to CSPDCL.
- d. Bidder agrees to use reasonable care to safeguard the proprietary information and to prevent the unauthorized use or disclosure thereof, which care shall not be less than that used by Bidder to protect its own proprietary information. Bidder recognizes that the goodwill of CSPDCL depends, among other things, upon Bidder keeping such proprietary information confidential and that unauthorized disclosure of the same by Bidder could damage CSPDCL.
- e. By reason of Bidder's duties and obligations hereunder, Bidder may come into possession of any proprietary or confidential information, then; Bidder, shall use such information only for the purpose of performing the Services.
- f. Bidder shall, upon termination of this Contract for any reason, or upon demand by CSPDCL, whichever is earliest, return any and all information provided to Bidder by CSPDCL, including any copies or reproductions, both hardcopy and electronic.

61. Intellectual Property and Patent Rights

"Intellectual Property Rights" means any patent, copyright, trademark, trade name, design, trade secret, permit, service marks, brands, propriety information, knowledge, technology, licenses, databases, computer programs, software, know how or other form of intellectual property right, title, benefits or interest whether arising before or after the execution of this Contract and the right to ownership and registration of these rights.

- a. CSPDCL shall own and have a right in perpetuity to use all Intellectual Property Rights which have arisen out of or in connection with the implementation of this Contract, including all processes and products which have been developed by the Bidder during the performance of Services and for the purposes of inter-alia use or sub-license of such Services under this Contract. The Bidder undertakes to disclose all Intellectual Property Rights arising out of or in connection with the performance of the Services to CSPDCL and execute all such agreements/documents and file all relevant applications, effect transfers and obtain all permits, approvals, consents and no objections that may be necessary in this regard to effectively transfer and conserve the Intellectual Property Rights of CSPDCL.
- b. Further, the Bidder shall be obliged to ensure that all approvals, consents, no objections, registrations, licenses, permits and rights which are inter-alia necessary for use of the information technology system shall be acquired in the name of CSPDCL, prior to termination of this Contract and which shall be assigned by CSPDCL if necessary under the applicable laws or otherwise to the /Bidder for the purpose of execution of any of its obligations under the terms of the Bid, or this Contract. However, subsequent to the term of this Contract, such approvals, consents, no objections, registrations, licenses, permits and rights etc., shall ensure to the exclusive benefit of CSPDCL.
- c. The Bidder shall ensure that while it uses any software, hardware, processes or material in the course of performing the Services, it does not infringe the Intellectual Property Rights of any person and the Bidder shall keep CSPDCL indemnified against all costs, charges, expenses, liabilities, claims, damages, litigations, suits, judgments and/or otherwise howsoever, arising out of any illegal or unauthorized use (piracy) or in connection with any claim or proceedings relating to any breach or violation of any permission/license terms or infringement of any Intellectual Property Rights by the Bidder or any sub-Bidder during the course of performance of the Services.

62. Compliance of Regulations & Acts

Bidder shall warranty that all Goods / Services rendered are in strict compliance with all applicable Rules, Regulations, IT Act and any amendment hereunder, and technical codes and requirements, as applicable from time to time.

63. Contract Closure / Completion

Unless terminated earlier, the Contract shall terminate on the successful completion of the Contract Period as specified in the Tender/Contract; i.e. 40 Months from the date of order.

64. Correspondence

All the correspondences on the subject should be made with -

The Chief Engineer (EITC)

Block No. – 8, CSPDCL, Dangania,

Raipur (CG) Pin Code - 492 013

Tel: (0771) – 257 4123 Fax: (0771) – 257 4125

ANNEXURES

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Annexure-1**Specific Instructions for e-bidding****1. Tender Process**

Please note that this tender shall be processed in "Online mode" only, through SAP SRM E-Bidding. Hence, Bidders are requested to upload clearly visible signed document relevant for the Bid.

2. E-Bidding User Manual & Instructions

- Tender Document Fee and EMD (Earnest Money Deposit) will be paid online through payment gateway via e-bidding portal.
- Tender Document fee is non-refundable, once the tender fee will be paid only after that bidder will be able to create the response on e-bidding portal.
- Bank Transaction charges on Tender fee and EMD will be displayed on e-bidding portal at the time of payment which will be borne by the bidder.
- Bidder has to pay EMD before submission thru only payment gateway. No other mode will be considered.
- Payment Gateway Process of Online Tender Fees & EMD is available in the <http://cspc.co.in/cspdcl/tender/etender/etenderindex.htm>
- Before participating through e-bidding, Bidders are requested to go through user manual & instructions carefully are available in
- <http://cspc.co.in/cspdcl/tender/etender/etenderindex.htm>
- Or click on Bidder Information link in following URL: -
- <http://ebidding.cspdcl.co.in:50724/irj/portal>

3. Tender Document

- Tender document can be downloaded from CSPDCL website as well as it is available at SAP SRM e-bidding portal at Technical RFx section
- www.cspdcl.co.in/tender/tendernotices/centraloffices
- <http://ebidding.cspdcl.co.in:50724/irj/portal>

4. E-Bidding Mandatory Requirement

- Bidder must have following in order to participate through ebidding-
- Valid Digital Signature;
- Valid SAP-SRM e-bidding User ID & Password;
- Valid e-mail ID.

5. Digital Signature

- Bidder must have a valid Digital Signature.
- Digital Signing Certificate and Digital Encryption Certificate can be obtained from any recognized digital signature issuing authority for participation in this tender.
- Bidder shall intimate in advance regarding details of digital signature issuing authority for ensuring the reliability of the same.

6. SAP-SRM e-bidding User ID and Password

- Bidder must have a valid SAP-SRM User ID and Password.
- For obtaining the same, Bidder has to submit online registration form through e-bidding portal.
- SAP-SRM User ID and Password will be sent on their registered e-mail ID mentioned in the form.

7. E-bidding Helpline

- In case, Bidder requires to seek any support from CSPDCL regarding e-bidding, they may contact at- (0771)-2576672, 2576673 (EITC, CSPDCL)

8. E-Mail ID

- Please note that e-mail is system generated, hence bidders are requested to provide valid e-mail id and should regularly check their inbox / junk / spam of their e-mail id.

9. Compliant System

- CSPDCL shall not be responsible for non-supporting system; such as- issues in internet connection, mal-functioning of associated hardware or software, etc. while submitting their offer.
- Bidders are encouraged to check for compliant system required for e-bidding, in their own interest.
- It is strongly recommended Bidders should not to wait till last minute for submission of bid, as any untoward internet / technical incident may disrupt the bid submission.
- No extension in time shall be granted on any of such grounds.

10. Submission of Price Bid

- Price Bids are accepted only through online procedure.
- Rates in Price Bid should be quoted online in item tab in e-bidding SAP-SRM System only (e-bidding portal).
- Also, scanned copy of price bid should NOT be uploaded / attached in e-bidding portal.
- Bidders should carefully go through clause-9 – "Submission of Bids" of the Tender Document.

11. Revision of Prices

- Once the rates are filled in the specified fields and are locked, no change on any ground whatsoever will be accepted.
- After deadline, no revision of prices shall be allowed by the system.
- However, in case of extension of due date of opening of the tender, the Bidders shall be allowed to submit revised bid in the system.

12. Technical Constraints

- a. If the documents are shown attached in e-bidding portal (i.e. - Techno-Commercial bid), but due to any technical reason it could not be opened, CSPDCL may request Bidders to submit another copy of the same.

Annexure-2**Submission of Bid Documents**

SN	Particulars	Documents to be submitted
		Online /e-bidding System Only
1.	Tender Document Fee	Paid online through payment gateway via e-bidding portal.
2.	Earnest Money Deposit (EMD)	Paid online through payment gateway via e-bidding portal.
3.	Letter intimating Authorized signatory	Signed (either Physically or Digitally) copy of letter
4.	Schedule-1 (Bid Covering Letter)	Signed (either Physically or Digitally) copy of Schedule
5.	Schedule-2 (General Information)	Signed (either Physically or Digitally) copy of Schedule
6.	Schedule-3 (Techno-Commercial Information)	Signed (either Physically or Digitally) copy of Schedule
7.	Schedule-4 (Techno-Commercial Deviation)	Signed (either Physically or Digitally) copy of Schedule
8.	Schedule-5 (PQR/Eligibility Criteria)	Signed (either Physically or Digitally) copy of Schedule (along with supporting documents)
9.	Schedule-6 (Financial Capability)	Signed (either Physically or Digitally) copy of Schedule along with required documents
10.	Schedule-7 (Pending Litigation / Outstanding Liabilities)	Signed (either Physically or Digitally) copy of Schedule
11.	Schedule-8 (Debarred/Blacklisted)	Signed (either Physically or Digitally) copy of Schedule
12.	Schedule-9 (Pre-Contract Integrity Pact)	Signed (either Physically or Digitally) copy of Schedule
13.	Schedule-10 (Authenticity of Documents Submitted)	Signed (either Physically or Digitally) copy of Schedule
14.	Schedule-11 (Price Bid)	To be submitted online on SAP e-bidding portal.

Annexure-3**Desired Solution & Scope of Work**

Selected Bidder shall be responsible for supply of required Software licenses, Hardware, installation, configuration, integration and providing comprehensive support for 3 years after Project Sign off of the security products under this project as mentioned in BOQ at Point 4 of this Annexure.

All information provided by Bidders in their bid on the basis of this tender shall be treated as contractually binding on the Bidders, subsequent on successful award of the assignment by CSPDCL.

1. Broad Scope

The broad scope of work proposed in the proposal is supply, installation, customization, testing and commissioning of desired solution as follows: -

a. Deployment of new cyber security products

- i. Next-Gen Firewall – 1 Set (2 nos in HA),
- ii. Next-Gen Network Admission / Access Control (NAC) & Network Security solution for 7000 IPs

b. Identity (User Account) & Privilege Access Management (Admin Account) upgradation

2. Contract period for support & warranty shall be 3 years from date of signing of Project Sign off.
3. Selected Bidder shall have to closely work with the respective OEM(s) for smooth execution of the Project.
4. **OEM Support alongwith annual configuration audit**

Selected Bidder has to ensure that all the license & hardware (to be delivered) in scope will have **back-to-back comprehensive onsite support and annual configuration audit by OEM**

SN	Description	OEM support validity
1	Next-Gen Firewall	Three years from the date of Project Sign off.
2	NAC and Network Security Solution	Three years from the date of Project Sign off.

5. Project Implementation

The selected bidder / SI shall be responsible to ensure and deliver all the functional, technical and operational requirements for new cyber security products with proper co-ordination with CSPDCL. The SI shall perform System Study to understand the existing CSPDCL Infrastructure and Applications as a part of scope.

Brief scope of work envisaged for this project is as under: -

- i. Technical team kick-off meeting and physical site survey to DC/DR.
- ii. Submission of Project Implementation Plan (PIP) with timelines.
- iii. Submission of As-Is & ToBe documents.

- iv. Installation and configuration of application & hardware appliances by OEM or OEM certified partner.
- v. Bidder will be required to work with existing System Integrator(s) of CSPDCL to integrate existing solutions with proposed solution.
- vi. Creation of rules based on final documents.
- vii. Creation of policies based on CSPDCL requirement.
- viii. Creation of roles as per CSPDCL requirement.
- ix. Integration with existing security devices and application, as per requirement.
- x. Administrative training and handing credentials to CSPDCL.
- xi. Rollout Support.
- xii. User level training and hands-on to CSPDCL FMS admin.
- xiii. Post Implementation Document (PID) creation.
- xiv. Audit of installed security system by OEM technical expert.
- xv. OEM Technical lab and support review.
- xvi. Yearly Cyber Security Audit of deployed security products from OEM or OEM certified partner.
- xvii. CSPDCL's authorized representative shall sign Project Sign off on provided above conditions in SOW. Acceptance tests should include verification of documentation for procedures followed to achieve SOW.

6. Dedicated Support Personnel (SPOC)

The SI shall nominate one dedicated person who shall act as a Single Point of Contact (SPOC) for implementation of this Project.

Annexure-4**Technical Specifications for Deployment of Gateway and Network Security Products**

i	Next-Gen Firewall (NGFW)	1 Set
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Minimum Technical Requirement

SN	Particulars	Compliance Yes/No
A	Industry Certifications, Evaluations and Intregation	
1	The NGFW OEM offered must be rated as "Leaders" in the latest Magic Quadrant for Enterprise Firewall published by Gartner	
2	OS with the appliance should be certified under Common Criteria program (global or the Indian Common Criteria Certification Scheme(IC3S) has been set up by the Ministry of Electronics and Information Technology (MeitY)) program for NDPP, Protection Profile for Stateful Traffic Firewall, IPS and PP for VPN Gateway	
3	Should have threat prevention capabilities to easily import IPS signatures from cyber security advisory bodies such as Cert-IN, NCIIPC, government entities or regulated entities.	
4	Malware analysis service should be certified with SOC2 for customer data privacy protection. The data uploaded for unknown threat emulation and analysis, along with all associated services like sandboxing, must reside within India's judiciary boundaries.	
5	Proposed model should be certified under "Mandatory Testing & Certification Of Telecommunication Equipment as per Department of Telecommunications, Ministry of Communications has notified "Indian Telegraph (Amendment) Rules" in Gazette of India vide G.S.R. 1131(E) PART XI on 5th September 2017" - Necessary documents to be provided.	
B	Platform & Hardware Architecture	
1	The appliance based security platform should provide Next Generation Enterprise firewall provide following features Application-ID/AVC, User-ID/Agent-ID, NGIPS, Anti-Virus, Anti-Spyware, Anti Malware, in-line DNS functionality in a single appliance.	
2	The proposed NGFW solution architecture should have Control Plane separated from the Data Plane in the Device architecture itself, whereby Control Plane should handle Management functions like configuration, reporting and route update and Data Plane should handle Signature matching (like exploits, virus, spyware, CC#), Security processing (like apps, users, content/URL, policy match, app decoding etc) & Network Processing (like flow control, route lookup, MAC lookup, QoS, NAT etc).	
3	The appliance should support atleast 8*10G Base-T, 10 * 10G SFP+ ports, 2* 25G SFP28 and 2*40/100G QSFP28 ports when supply. All the ports loaded should be loaded with necessary SR SFP modules. Additional HA port on and above asked ports.	
4	The NGFW must support the separation of the management plane (that handles the firewall GUI and the configuration of the firewall) and the data plane (that handles the traffic that is passing across the firewall) in the Device architecture itself. The NGFW to have a minimum of 4 CPU cores or more cores dedicated to the management plane.	

Deployment of Gateway and Network Security

5	Proposed Firewall should not be proprietary ASIC based in nature & should be open architecture to protect & scale against dynamic latest security threats with a hardened 64-bit operating system to support higher memory (minimum 48 GB). The appliance hardware should have minimum 480 GB SSD for system storage and minimum 16 physical cores.	
C	Performance & Scalability	
1	Minimum NG Threat prevention throughput in real world/production environment (by enabling and measured with Application-ID/AVC, User-ID/Agent-ID, NGIPS, Anti-Virus, Anti-Spyware, Anti Malware, File Blocking, Sandboxing, DNS Security and logging security threat prevention features enabled – minimum 15 Gbps Throughput using Application / Enterprise Mix (http). The bidder shall submit the performance test report reference from public documents or from Global Product Engineering department / Global Testing Department of OEM certifying the mentioned performance and signed by person with PoA.	
2	Firewall should support atleast 250,000 new sessions per second on Layer 7 with HTTP transactions or 1,500,000 new sessions per second on Layer 4	
3	Firewall should have integrated redundant hot-swappable power supply	
4	Firewall should not consume more than 2U of rack space	
5	Firewall should support Active-Active Clustering for high availability	
6	The proposed firewall model should support following services- Application Visibility and Control, Anti-Virus, Anti-Spyware, Zero-day Malware Prevention, DNS Security	
7	All above asked specifications should be provided on a single appliance only. The device or any of its family should not have any feature of wireless within its hardware or software.	
D	Firewall Features	
1	Firewall should support creating access-rules with IPv4 & IPv6 objects, user/groups, application, geo-location, url, zones, vlan, etc	
2	Firewall should support Nat66/NPTV6 (IPv6-to-IPv6), Nat 64 (IPv6-to-IPv4) OR Nat46 (IPv4-to-IPv6) functionality	
3	Should support Static, RIP, OSPF and BGP protocols	
4	Should support Multicast protocols like IGMP, PIM, etc	
5	Should support capability to integrate with other security solutions to receive contextual information like security group tags/names. Should have capabilities to passively device discovery and identification by implementing necessary mechanism which enables collection of IP-MAC address bindings where relevant network traffic carrying information which is not seen by the firewall.	
6	Should support Artificial Intelligence and Machine learning to detect IoT devices and make policy recommendations as part of a cloud-delivered and natively integrated service on the NGFW.	
7	OS of the appliance should be certified under Common Criteria program (global or the Indian Common Criteria Certification Scheme(IC3S) has been set up by the Ministry of Electronics and Information Technology (MeitY)) program for NDPP, Protection Profile for Stateful Traffic Firewall, IPS and PP for VPN Gateway.	
8	Should support more than 3000 (excluding custom application signatures) distinct application signature as application detection mechanism to optimize security effectiveness.	

Deployment of Gateway and Network Security

9	Should be capable of dynamically tuning IDS/IPS sensors (e.g., selecting rules, configuring policies, updating policies, etc.) with minimal human intervention.	
10	Should support more than 15,000 (excluding custom signatures) IPS signatures or more.	
11	Should support be able to create correlation rule leveraging multiple rules/events.	
12	Should be capable of automatically providing the appropriate inspections and protections for traffic sent over non-standard communications ports.	
13	Should be able to link Active Directory and/or LDAP usernames to IP addresses related to suspected security events.	
14	Should block known as well as unknown network and application-layer vulnerability exploits including OWASP 10 based attacks like: cross-site scripting and SQL injection based attacks.	
15	The solution must provide IP reputation feed that comprised of several regularly updated collections of poor reputation of IP addresses determined by the proposed security vendor.	
16	Solution should support IP reputation intelligence feeds from third party and custom lists of IP addresses including a global blacklist.	
17	The solution should support capabilities to neutralise DNS tunnelling and it should automatically stop with the combination of policy on the next-generation firewall and blocking the parent domain for all customers.	
18	The solution should support integration and correlation to provide effective prevention against New C2 domains, file download source domains, and domains in malicious email links. Integrate with URL Filtering to continuously crawl newfound or uncategorised sites for threat indicators. Should have OEM human-driven adversary tracking and malware reverse engineering, including insight from globally deployed honeypots.	
19	DNS security capabilities should block known Bad domains and predict with advanced machine learning technology and should have global threat intelligence.	
20	Must be able to do real-time inspection of both the DNS request and DNS response can stop DNS hijacking attacks in real time. Solution should perform Inline inspection to protect from DNS threats such as DNS Tunneling, DNS Sinkholing, DNS Hijacking, DGA, Domain Shadowing, DNS Injection attacks, Compromised DNS registrar analysis, DNS Spoofing, DNS Cache Poisoning and DNS Spoofing etc.	
21	It should enforced DNS protection transparently irrespective of DNS resolvers and requires no changes to DNS infrastructure. It should provide visibility into and protect all types of DNS traffic, such as plain-text DNS, DNS over TLS (DoT), and DNS over HTTPs (DoH), including those going to unknown resolvers. It should support comprehensive DNS categories such as Strategically Aged Domain, Stockpiled Domains, Subdomain Reputation, Cybersquatting Domains, Newly Registered Domains, etc.	
22	Must Protect from following DNS attack Scenerio : #Attackers take ownership of expired cloud IP and control an organization's subdomains where they can host malicious sites #Attackers exploit DNS vulnerabilities outside of an organization's control to craft DNS response, allowing them to redirect users to a malicious site #Attackers inject malicious payload in a DNS response to exploit any	

Deployment of Gateway and Network Security

	known vulnerabilities inside an organization #Attackers scan for frequently queried non-resolvable domains from an organization, register the domain and use a DNS response to redirect host to malicious content #An attacker compromises a DNS resolver in the path to redirect users to malicious content through a DNS response #Attackers compromise DNS Registrar account, either by exploiting vulnerabilities or through unauthorized access, allowing them to redirect traffic for legitimate domains.	
23	Should support DoS (Denial of Service) Protection to defend against zero-day network-flood attacks, detect traffic anomalies and prevent zero-day, unknown, flood attacks by identifying the footprint of the anomalous traffic. Network-flood protection should include: • TCP floods—which include SYN Flood • UDP flood • ICMP flood / IGMP flood	
24	Should support Zero day DNS flood protection with (Challenge Response mechanism like RFC check, Active Challenge, Passive challenge) and Automatic real time signature creation	
25	There should have integration capability or APT solution with following features: * This could be a on premise using hybrid cloud base unknown malware analysis service *Advance unknown malware analysis engine should be capable of machine learning with static analysis and dynamic analysis engine with custom-built virtual hypervisor analysis environment *Cloud base unknown malware analysis service should be certified with SOC2 or any other Data privacy compliance certification for customer data privacy protection which is uploaded to unknown threat emulation and analysis * The solution must be able to use AV and zero day signatures based on payload and not just by hash values and it should support bare metal analysis if required using hybrid setup. *The protection signatures created base unknown malware emulation should be payload or content base signatures that cloud block multiple unknown malware that use different hash but the same malicious payload. *Should protect against never-before-seen phishing and JavaScript attacks inline. Solution should be capable to use both signature based and ML based signature less technology.	
26	Solution shall have capability to analyze and block TCP/UDP protocol to identify attacks and malware communications. At minimum, the following protocols are supported for real-time inspection, blocking and control of download files: HTTP, SMTP, POP3, IMAP, NetBIOS-SSN and FTP. Malware analysis capabilities should be capable of executing MS Office Documents, Portable Documents, Archive Files, Multimedia Files and executable binaries or more in a virtual environment in cloud.	
27	The Appliance OEM must have its own threat intelligence, analysis centre and should use the global footprint of security deployments for more comprehensive network protection.	

Deployment of Gateway and Network Security

28	The detection engine should support capability of detecting and preventing a wide variety of threats (e.g., network probes/reconnaissance, VoIP attacks, buffer overflows, P2P attacks, etc.)	
29	Should be able to identify attacks based on Geo-location and define policy to block on the basis of Geo-location.	
30	The detection engine should support the capability of detecting variants of known threats, as well as new threats.	
31	The detection engine must incorporate multiple approaches for detecting threats, including at a minimum exploit-based signatures, vulnerability-based rules, protocol anomaly detection, and behavioural anomaly detection techniques.	
32	Should support Open based Application ID for access to community resources and ability to easily customize security to address new and specific threats and applications quickly.	
33	The management platform must be accessible via a web-based interface. Should support predictable performance with all security services enabled, should include centralized administration and configuration management of firewall.	
34	An Adoption Summary should be included to assist in identifying devices, zones, and areas where enhancements to security policy capability are necessary. It allows for a review of adoption information categorized by Device Group, Serial Number, Zones, Areas of Architecture, Tags, Rule Details, and Zone Mappings. Filtering by Device Group can help narrow the focus and reveal specific gaps.	
35	Visibility into the security status and trends of deployment is informed by the security postures of the integrated Next-Generation Firewall (NGFW) devices. The severity of the security score, along with its associated security grade (good, fair, poor, critical), is utilized to assess the security posture of each device. This security score is derived from the priority, quantity, type, and status of the open alerts.	
36	In order to ensure NGFW is deployed as per industry best practices, OEM best practices, to avoid misconfiguration and avoid Human error, We Would like to review the NGFW config on a yearly basis. OEM to provide online, GUI based easy to use tools for best practice assessment. OEM to provide comprehensive report highlighting config gaps against best practices & provide steps to rectify them. We should also have access to this tool to do Best Practice assessment by themselves whenever required by generating automated reports.	
E	VPN Features	
1	Proposed solution must have VPN capabilities from initial for atleast 500 users with below features:	
2	The solution should be able to support AES, 3DES Encryption algorithms and MD5, SHA Hashing algorithms for VPN Encryption at the minimum.	
3	The solution should support Deffie Hellman Groups 1,2,5,14 and 21.	
4	The solution should support TLS 1.2, 1.3 and SSL v3 with DHE, ECDHE, ECDSA algorythm support.	
5	The proposed solution must be able enforce policy on the basis of endpoint profile such as Patch updates, AV status, disk encryption status for compliance verification and should be able to provide access based on the compliance state.	

Deployment of Gateway and Network Security

6	The proposed solution should be able to share the identity information such as IP address, username, device type, OS and software details with other solutions such as NAC for conditional access. Necessary solution to be incorporate from beginning.	
F	Monitoring, Management and Reporting	
1	The proposed solution should be in VM form factor and should be from the same OEM as NGFW, It must store logs from the security devices for a period of 90 days and provide Restful APIs for integration with 3rd party tools.	
2	The proposed solution must support the ability to lock configuration while modifying it, avoiding administrator collision when there are multiple people configuring the instance. It shall provide the following: a. Comprehensive event logging b. Historical Reporting c. Report generation d. Syslog e. SNMP v2 & v3 f. Real Time Monitor g. E-mail Notification h. GUI based interface i. Command Line Interface (SSH)	
3	There should be provision to ensure that if someone commit a configuration change that inadvertently causes the firewall to lose connectivity to Central Manager, it should automatically revert the Maanger and firewall configuration to the previous running configuration.	
4	The Central Manager should support Master Key deployment feature so that uniform master key deployment is ensured	
5	The Central Manager should have capabilities to troubleshoot configuration errors by performing different operations such as revert, import, export, save.	
6	The Central manager should automatically push the configuration to firewalls when the firewalls initially connect using onboarding workflow	
7	The Central manager should support predefined reports and custom reports that meet customer needs for specific data and actionable. It should also be possible to combine predefined and custom reports. Following type of reports should be supported • Canned Reports for Applications, Traffic, Threat, and URL Filtering. • Reports based on behavior to identify potential botnet-infected hosts. • Scheduling and creation of on-demand report on the application use and URL activity for a specific user or for a user group. • Scheduling and creation of custom reports that show exactly the information you want to see by filtering on conditions and columns to include. • Should support email of reports to one or more recipients.	
8	Shall provide management of policies via directly on VM via CLI, SSH & GUI.	
9	Shall provide the functionality of Auto-Check for latest firmware/software versions & download the same manually as well as automatically.	
10	The Historical Reports shall be available for multiple timeframe i.e. hourly, daily, weekly, monthly as well as customized period.	

Deployment of Gateway and Network Security

11	Reports shall be available based on various factors such as Source / Destination IP Address, TCP/UDP Port Number, Protocol, ID, Traffic flow between the Zones, Timestamp, Human readable description of event and action taken (Block / log / email) etc.	
12	Shall be able to provide 'At-a-glance-Dashboard' to provide overall status of the health (CPU, etc.), network traffic, concurrent sessions, connections /sec, blocked connections etc.	
13	Should be used for centralized policy and management so that help in increase of operational efficiency in managing and maintaining a distributed network of security instance.	
14	Delegate appropriate levels of administrative control at the regional level or globally with role-based management.	
15	Group instances into logical, hierarchical groups for greater management flexibility.	
16	Utilize template stacks for easy security configuration and provide view on trends in potential threats, traffic patterns and users activity	
17	Automatically correlate indicators of threats for improved visibility and confirmation of compromised hosts across the network.	
18	Centrally analyze, investigate and report network traffic, security incidents and administrative modifications.	
19	View a highly customizable graphical summary of applications, users and content and security threats.	
20	Should have provision to push pre and post defined rules to security instance.	
21	Generate actionable, customizable reports to view application and threat traffic, usage, and user behavior across your configuration.	
22	There should be provision to log query and generate reports, central management should dynamically pull the relevant logs from its log storage as per the defined retention period and presents the results to the user.	
23	Should have predefined reports that can be used as it is and provision for customized report in order to suit specific requirements.	

ii	Next-Gen NAC & Network Security Solution	1 Lot
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Minimum Technical Requirement

Sr. No.	Particulars	Compliance (Yes/No)
A	Industry Certifications, Evaluations and Intregation	
1	The Solution should provide a highly powerful and flexible attribute-based access control solution that combines authentication, authorization, posture, profiling, and guest management services on a single platform.	
2	CSPDCL intends to procure the solution for 7,000 devices covering endpoints, routers, switches, desktops, IP phone, printers, etc. The implementation should be at DC-DR locations and there should be HA between DC-DR.	
3	The Solution should offer the flexibility to incorporate additional functionality in future for storage of asset inventory data and device posture history, allowing the CSPDCL to retain asset inventory records for up to 90 days as CSPDCL may need to search and monitor configuration changes and device posture to facilitate forensic investigations as needed.	
4	CSPDCL reserve the right to conduct the onsite POC of Solution as a part of technical evaluation in live environment with 2,000 endpoints. CSPDCL Team may ask to demonstrate all or specific capabilities as per compliance sheet. Bidder/OEM must demonstrate the same within 7 working days. Bidder/OEM have to arrange POC Hardware & License of Solution. If Bidder/OEM fails to demonstrate such features, CSPDCL may technically disqualify such solution/Bidder.	
B	Visibility, Categorization and Assessment	
1	The solution should provide comprehensive visibility by automatically discovering, classifying, and controlling endpoints connected to the network to enable the appropriate services per endpoint of each & every device connected with the CSPDCL's network.	
2	Solution must get complete visibility of all open ports (TCP/UDP) of all connected device in the enterprise & help in categorization of vulnerable port Allows administrators to quickly take corrective action (Quarantine, Un-Quarantine, or Shutdown) on risk-compromised endpoints within the network.	

Deployment of Gateway and Network Security

3	Solution should be able to detect, classify and restrict all endpoints dynamically mentioned above as soon as these are introduced to the CSPDCL's network based on various parameters (including and not limited to) as OS signature, chassis, traffic pattern, OEM information, MAC address, IP address, passive network telemetry, etc. Information may be fetched by querying the actual endpoints, or alternatively from the infrastructure, Domain Name, Hostname using MAC OUIs, using RADIUS, AD, HTTP, DNS, Net Flow, SPAN/Mirrored traffic, network scan, etc.	
4	Agent & Agentless -The proposed solution must support both agent based & Agentless deployment and provide complete posture analysis both with & without agent. CSPDCL will be at its discretion to implement either agent based or Agentless solution at all endpoints.	
5	The Solution should support all the features& Functionalities like Profiling, Compliance check, Remediation, Blocking, reporting, alerting the device admin, notifying the end user etc. in both agent and Agentless mode(without installing any agents or executable files)	
6	The proposed solution must support central client installation on AD and non-AD endpoints with a zero touch deployment approach to the extent possible	
7	The propose solution should support Guest users on-boarding through self-register web portal (branding with Chhattisgarh State Power logo and images) and provide access of network as per the policy defined by the CSPDCL to limit access to specific resources, length of connections and set automatic account expiry after a specified number of hours or days. User Credentials should be delivered through SMS or email.	
8	The proposed solution must support validation of endpoints through three methods: agentless (without installing any agents or executable files), persistent client-based agents, and dissolvable agents. It should ensure that endpoints comply with the company's posture policies, which include, but are not limited to, checks for:	
	Latest OS patches	
	Antivirus and antispysware software packages with up-to-date definitions	
	Registry keys and values	
	Installed applications	
	Local firewalls	
	Peer-to-peer (P2P) applications	
	Disk encryption	
9	USB device checks	
	The solution should support both 802.1X and non-802.1X architecture and integration with Chhattisgarh State Power's existing network infrastructure without the need of any hardware and software upgrades required for 802.1X deployment. For Non-802.1X supported component it should support other Protocol viz. Agent-less, MAC Address based Authentication, SNMP, SSH, etc.	

Deployment of Gateway and Network Security

10	The solution must automatically classify detected devices into categories based on their functions, such as Windows (all versions), Apple Mac, Printers, Network Devices, Linux, Unix, and IoT devices. This classification should be achieved without installing any agents or executable files on the endpoints, particularly in environments where 802.1x is not implemented.	
11	Solution should support auto-remediation of PC clients as well as periodic reassessment to make sure the endpoint is not in violation of company policies and must check the end device compliance before permitting access to the network.	
12	Solution must support discovery, classification and assessment with multiple IOT devices (e.g. IP Phone , IP Camera, IP Printers , IP Scanners etc.) without doing any changes in network infrastructure. Discovery of the IOT Devices with accurate classification (Based on OS, Vendor Model, MAC OUI, Network function) & assessment (where device are connected , how device is connected , Must be in appropriate segment, vulnerable (TCP/UDP) port assessment, SNMP/ SSH/ Telnet Default/ Weak credentials verification etc.) and help in determining which devices in CSPDCL's network are vulnerable.	
13	The Solution must provide complete visibility of every connected devices. Visibility must not only be limited to IP address, MAC address and Operating System but it should also include OS version, service running, process running, application version, application installed etc.	
14	The solution must have ability to perform passive discovery of all IP-based devices such as Device type (computers, printers, network equipment), HTTP user agent , HTTP/DNS header information by using SPAN or traffic mirroring functionality and helping CSPDCL to identify, profile, and monitor devices on CSPDCL's network.	
15	Solution must support functionality in both managed and un-managed switches. Solution must help in uncovering of unmanaged & unknown Switches through number of hosts detection, etc. and block non-compliant endpoints, which are connected to un-managed switches.	
16	Solution must be able to detect all users (domain as well as local) including local admin across all endpoints.	
17	The solution should provide comprehensive visibility into all installed applications with their exact version details in the network, as well as all processes and services running on the network. Once complete visibility is achieved, the solution must support the creation of custom policies to address vulnerable services and enforce necessary controls on the endpoints. These controls may include notifying administrators, terminating processes or services, and uninstalling applications.	
18	Solution must support controlling capabilities of USB devices (with Class level detection of Peripheral Devices like printer, imaging devices, WPD, Bluetooth, etc.) with and without endpoint agents.	

Deployment of Gateway and Network Security

19	Solution should have option to create posture assessments policies by checking availability of latest OS patches, antivirus and antispyware software packages with current definition file variables (version, date, etc.), registries (key, value, etc.), and applications.	
20	Solution should have capability to establish user identity, location, and access history, which can be used for compliance and reporting.	
21	The solution must support all types of endpoints and devices used by CSPDCL (SI must insure this to visiting ISC team), regardless of vendor, operating system, or connection type (wired, wireless, VPN, etc.).	
22	The solution should support CSPDCL's existing network infrastructure i.e. managed & unmanaged switches to block or limit the non-complied and rogue devices behind that.	
23	Solution should verify access by users to network resources according to an authorization scheme defined in an existing authorization system, such as Active Directory, RADIUS servers, TACACS etc. It shall allow enforcement of identity- based policies after an element is allowed in the network.	
24	The Solution should provide a highly powerful and flexible attribute-based access control solution that combines authentication, authorization, posture, profiling, and guest management services on a single platform.	
25	Solution must be deployable in out-of-band model (with all feature& functionality) to ensure network keeps functioning even if the solution goes down for whatever reason.	
26	The proposed solution should be fully functional without requiring the deployment of a client, agent, or any executable file on endpoints.	
27	The solution should provide policies to address known ransomware threats by detecting, evaluating, and responding to vulnerabilities and threats used by ransomware. Policies should offer instant visibility, options for a fast and simple response, and the ability to track and segment devices that cannot be patched or mitigated.	
28	The solution should check for known vulnerabilities on Windows endpoints and remediate or handle the device as specified within the rule, without relying on any third-party tools.	
29	The solution must support at least the following IOC types for scanning:	
	CnC Address (Command and Control URL).	
	Process (Process Name, Process Hash, Process Hash Type).	
	File Exists (File Name, File Path).	
	Mutex (Mutex Name).	
	Registry Key (Path, Value).	
	Service (Service Name)	

Deployment of Gateway and Network Security

30	The solution should be capable of performing IoT posture assessments by identifying all IoT devices, such as routers, switches, printers, IP cameras, and IP printers, that are using factory default credentials. It should also be able to test these devices for factory default and weak credentials across various protocols, including SSH, Telnet, and SNMP.	
31	The proposed NAC solution should provide Hardware/Asset Management information, including all TCP/UDP ports open in the network, hardware information of endpoints, all services, processes, and applications installed on the network.	
32	Solution should integrate with VM infrastructure to provide out of the box visibility to Virtual Machine properties such as Boot Time, Virtual Machine Hardware, Virtual Machine is Orphan, Virtual Machine Peripheral Devices info, Virtual Machine Port Group, Virtual Machine Power State, Virtual Machine Usage CPU (one thousandth), Virtual Machine Usage Network I/O (KBps), etc.	
33	The proposed solution should be able to integrate with Data centre fabric for Full data center visibility and information about all ACI fabric-connected endpoints regardless of networking environment.	
34	The proposed solution should support vendor agnostic switch infrastructure and operate in a heterogeneous network with switches and routers from multiple OEMs such as Cisco, Juniper HP, 3com, Nortel, D-link etc. including legacy switches.	
C	Management	
1	Solution should have a Centralized Management for managing, monitoring & controlling for all the features of the NAC.	
2	Centralized Management solution must have executive, detail and customizable dashboard and support role-based users/admins.	
3	The solution should able to categorize the alerts on the basis of risk (high, medium and low), type of devices, location etc.	
4	The solution should offer a built-in alerting mechanism through email & SMS based on the categorization of alerts.	
5	The solution should have a single web-based or client based. GUI console for admin users for managing the full functionalities of NAC solution.	
D	Remediation & Control: Auto-remediation capability	
1	Solution must be able to integrate with existing Antivirus for auto-remediation.	
2	Solution must validate list of blacklisted applications running on the machine.	
3	Solution must help Chhattisgarh State Power in enforcing security policies by blocking, isolating, and repairing non-compliant machines in a quarantine area without requiring administrator attention.	

Deployment of Gateway and Network Security

4	Solution should help in checking accessment policies & should classify hosts as compliant & non-compliant. Auto-remediation should assist/ guide users through a self-remediation process.	
5	Solution must support auto-remediation on all the non- compliant end point like Update AV automatically, Update Patches automatically, Start Antivirus/ Patch Endpoint agent, Kill/ Uninstall blacklisted application/ Service/ process etc.	
6	The solution should be able to provide capability to run custom scripts on Windows endpoints to meet endpoint compliance. (For Example, but not limited to endpoints chassis type, Free Space in C drive or Windows Activation status details etc.) or for auto-remediation (For Example Uninstalling Blacklisted application, Kill Blacklisted process, installing security host-based agent etc.)	
7	The solution should be able to provide capability to run custom scripts on Linux endpoints. Running a custom script or command is based on compliance policy or for auto- remediation. For Example, but not limited to: - To fetch the details custom details from Linux endpoint, get the running process related details or uninstalling the malicious software from endpoint etc.	
8	The solution should be able to provide capability to run custom scripts on Apple Macintosh. Running a custom script or command is based on compliance policy or for auto- remediation. Example but not limited to:- To fetch the custom details from Apple Macintosh endpoint , get the running process related details or uninstalling the malicious software from endpoint etc.	
9	Solution Must support the capabilities to detect and disable unauthorized dual-homed and NAT endpoints.	
10	Solution must provides a wide range of access control mechanisms, including downloadable access control lists (dACLs), VLAN assignments, URL redirect, or Security Group Access (SGA) tagging.	
E	Continuous health check of endpoints	
1	Solution should detect the behaviour of state-change on endpoints after authenticating and authorizing. Like after granting the access has to monitor the endpoint for any state change with respect to compliance requirement.	
2	The solution should be able to detect endpoint state changes (AV disabled, execution of an unauthorized application, etc.) and auto-remediation e.g. it should detect and disable unauthorized dual-homed endpoints. It should be done on a continuous basis rather than waiting for the next authentication event to happen.	

Deployment of Gateway and Network Security

3	Solution should integrate seamlessly with Chhattisgarh State Power's existing IT infrastructure comprising of Routers, switches, firewalls, Antivirus solution, SIEM solution, Active Directory, vulnerability assessment tool, patch management solution etc.	
4	The solution should support orchestration with various security solutions viz. firewalls, Antivirus solution, SIEM solution, Active Directory, vulnerability assessment tool, patch management solution etc. to dynamically control the rogue endpoints i.e. the endpoints should be quarantined, blocked, remediate by the solution without requiring administrator's attention. Eg: if any endpoint is notified as being rogue by antivirus solution or any other security solution, the NAC should dynamically block or quarantine the endpoint.	
5	The solution should provide native integration with Chhattisgarh State Power's existing vulnerability assessment solution through purpose-built plugins or supported connectors to enable enriched vulnerability context and asset correlation, including validation of scan recency, on-demand scan triggering, and automated, policy-based remediation actions, beyond basic data import or manual synchronization.	
6	The proposed solution must provide robust integration with existing Patch management solution infrastructure to automate and streamline endpoint management. This integration should enable the automatic discovery and enrolment of unregistered devices into Patching solution, including those with missing or corrupted Patch management agents, significantly reducing manual IT workload. The solution should continuously validate endpoint compliance with security and patching policies, ensuring all systems maintain the required software, security patches, and configurations throughout their network. This integration will enhance security operations efficiency, minimize business risk in real-time, and ensure consistent endpoint security posture across the organization	
7	The solution should integrate with Enterprise level SIEM solution and Syslog server. The solution should be able to share information using standard protocols (Syslog, CEF) and should allow the SIEM system to send syslog messages to the NAC solution to automatically respond to any endpoint security issues.	
8	The solution should provide native integration with leading next-generation firewall (NGFW) platforms through purpose-built plugins or supported connectors to enable enriched security context and real-time enforcement, including automated response to compromised devices, dynamic role-based policy updates, and differentiated user and device access, beyond basic integration or manual policy management.	

Deployment of Gateway and Network Security

9	The Solution must receive the SIEM data to take policy-based response actions such as quarantining or blocking potentially compromised or noncompliant devices, depending on the severity of the violation information received from SIEM. For example, SIEM detects, via firewall log correlation, a targeted denial of service (DoS) attack, it can direct Solution to have the the firewall automatically block the source of the attack to prevent further disruption of service to the application(s) on the network.	
10	The Solution must be able to integrate with existing Antivirus solution/ EDR for Auto- Remediation. The solution must achieve EDR agent, related components such as Intrusion Prevention System, firewall and Advanced Responses installed, configured, and properly running on all devices at all times. If a connecting device does not comply with your security policy, Solution can isolate the device from the network and facilitate remediation, such as redirecting the user to a self-remediation page or enabling real-time controls on the device.	
11	In the event of complete failure of integrated solution which may impact in NAC solution working such as an Active Directory, the solution should be capable of ensuring business continuity	
12	Solution must be able to provide compliance for Hardware properties on windows like Hardware Computer, Disks, Monitors, Motherboard, Network Adapter, Physical Device, Physical Memory, Plug and Play Device, Processor, etc.	
F	Reporting and administration	
1	Solution must have built-in monitoring, reporting, and troubleshooting console to assist helpdesk operators and administrators streamline operations.	
2	Solution must collect and keep forensic evidence on any unauthorized access activity within the network as follow: Event timestamp, network events in sequence, host info, IP address, MAC address, switch info, etc.	
3	The solution must support the capability to generate reports on: Hardware components (e.g., Memory, RAM, HDD, Peripheral devices) • All installed software with version details across the network • All TCP/UDP open ports in the network • Services running on the network • Processes running on the network • Application inventory across the managed extended enterprise	
4	Solution must be able to display information notifications in an interactive manner viz. bubble notification, email, etc.	

Deployment of Gateway and Network Security

5	Solution should have built-in web console for monitoring, reporting, and troubleshooting to assist help-desk and network operators in quickly identifying and resolving issues. It also support comprehensive historical and real-time reporting for all services, logging of all activities, and real-time dashboard metrics of all users and endpoints connecting to the network.	
6	The solution must include predefined, out-of-the-box reports that can be customized to meet the specific needs of Chhattisgarh State Power. It should support generating reports on a scheduled basis and on-demand in real-time. Additionally, it should have the capability to send these reports via email from the console to ensure timely access to critical information.	
7	The solution should provide native SIEM integration with Chhattisgarh State Power's existing SIEM solution through purpose-built plugins to enable enriched event sharing and deeper security context, beyond basic syslog forwarding.	
8	The solution must be able to generate report on different parameters. i.e. Compliance, Non-Compliance, corporate, Guest, BYOD, Mobile Devices, IOT's etc.	
9	Solution should have ability to generate reports in different formats, such as CSV/ PDF/ Excel, etc.	
10	Solution should have built in various reports and can create custom reports like executive report, detection life cycle report, top 10 reports for various category and health reports, etc.	
11	The Solution must incorporate a complete set of tools for reporting (Audit trailing, customizable reporting and data export capabilities), analysis, and troubleshooting. Data from access transactions can be organized by customizable data elements and used to generate graphs, tables, and reports. Must correlate and organize user, authentication, and device information together.	
G	Support for Chhattisgarh State Power's existing environment (Switch not supporting 802.1x , Device connected behind un-managed switch)	
1	The solution should able to detect the endpoint at the instant it connects to CSPDCL network.	
2	The solution should provide complete details about endpoints connected.	
3	The solution should provide all the capabilities mentioned in all the above sections.	
4	The solution should able to restrict communication to a non-compliant device which is connected to a hub/unmanaged switch, while another compliant device which should remain functional.	
H	Support requirements	
1	OEM of the solution must have its own technical support center in India.	
2	The OEM should offer 24/7 remote support for the software.	

Deployment of Gateway and Network Security

3	Bidder has to maintain the Security solutions and its related components and CSPDCL should have direct access to OEM TAC support on 24x7x365 basis throughout the period of the contract with the Chhattisgarh State Power i.e. for 3 years. The bidder has to consider related cost for such OEM TAC support for the solutions from concerned OEMs in their commercial bid.	
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SCHEDULES

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Schedule-1

Bid Covering Letter
(Part of "TECHNO-COMMERCIAL BID")

Date _____

From

(Registered name and address of the Bidder)

To,

The Executive Director EITC),
Energy InfoTech Centre,
Block No. 8, CSPDCL,
Dangania, Raipur. 492013

Sir,

Having examined the bidding documents, we the undersigned, submit the offer for Renewal of IT products as detailed in the bidding document in response to tender number Tr-414, dated **20-Apr-2026 (RFx No.- 8100050781)**.

We undertake to maintain validity of the Bid for a period of 180 days from the date of Bid opening as specified in the bidding document, which shall remain binding upon us and may be accepted at any time before the expiration of that period.

Also, we confirm that any upward or downward variation in taxes, if any, made applicable by state / central government during the contract period, shall also be applicable, as per actuals, as the case may arise.

I, _____ on behalf of M/S _____
_____ am giving undertaking that details given are correct to the best of my knowledge and I agree to abide by all your tender / order terms and conditions. In case it is observed to be false incorrect / incomplete subsequently, I will be solely responsible.

Dated this _____ day of _____.

Signature

.....

(in the capacity of)

Duly authorized to sign bid for and on behalf of

(Signatures with name, designation, address)

Schedule-2**GENERAL INFORMATION**

(Part of "TECHNO-COMMERCIAL BID")

1	Bidder (Company) Name	
2	Address of the Bidder	
3	Date of Incorporation	
4	Project-in-charge or Contact Person	Mr. (Ms)
5	Status / Designation	
6	Telephone No	
7	Mobile No	
8	e-mail id	
9	Registered office Address	
10	Any other information that bidder may like to be given in order to highlight his bid If Yes, give details	

**Place
Date**

**Signature of Bidder
Name
Designation / Status
Company Seal**

Schedule-3**TECHNO-COMMERCIAL INFORMATION**

(Part of "TECHNO-COMMERCIAL BID")

1.	Tender Document Fee	Rs.5,000
1a	Transaction reference	
2.	Earnest Money Deposit	Rs. Five Lakh
2a	Transaction reference (if exempted attach documentary evidence & mention page no)	
3.	Whether the offer is valid for 180 days from The date of opening of techno-commercial bid, if no, state your validity period.	
4.	Whether Price quoted is FIRM	Yes/No
5.	GST rate quoted	<Mention Percentage>
6.	Whether Bidder has accepted CSPDCL Payment Terms as per Clause-33	Yes/No
7.	Whether Bidder has accepted CSPDCL Penalty as per Clause-39	Yes/No
8.	Whether Bidder has accepted CSPDCL Security Deposit Clause-30	Yes/No
9.	Whether Bidder is agreeable to accept Extension Order on same rates, terms and condition, if any, extension order is placed	Yes/No
10.	Is the Solution Provided is in conformity with the CSPDCL requirement as per Annexure-3-4	Yes/No
11.	Whether Bidder has any deviations / Technical Constraints	Yes/No

Place**Date**

Signature of Bidder
Name
Designation / Status
Company Seal

Schedule-4**TECHNO-COMMERCIAL DEVIATION**

(Part of "TECHNO-COMMERCIAL BID")

From: Bidder's Name & Address -

To

The Executive Director (EITC),
 Energy InfoTech Centre,
 Block No. 8, CSPDCL,
 Dangania, Raipur. 492013

Sub : Techno-Commercial deviations

Dear Sir,

Techno-Commercial deviations / variations to specifications stipulated in the tender are as under : -

SN	Tender Document Page No.	Tender Document Clause No.	Tender Conditions	Statement of Deviations and Variations
1. 2. n.				

Except aforesaid deviations, the entire order, if placed, on us shall be executed in accordance with your specifications and any other conditions, variations / deviations etc. if found, elsewhere in our offer should not be given any considerations while finalizing the tender.

**Place
Date**

**Signature of Bidder
Name
Designation / Status
Company Seal**

Note: Continuation sheet of like size and format may be used as per bidder's requirements and shall be annexed to this schedule.

Schedule-5**Bidder Credentials for PQR/Eligibility Criteria**

(Part of "TECHNO-COMMERCIAL BID")

From: Bidder's Name & Address -

To

The Executive Director (EITC),
Energy InfoTech Centre,
Block No. 8, CSPDCL,
Dangania, Raipur – 492 013

Sub: Bidder Credentials required for fulfilling the PQR/Eligibility Criteria.

Dear Sir,

As required for fulfilling the PQR / Eligibility Criteria is as follows: -

SN	Particulars	Compliance Yes/No	Reference Details
1	Bidder should be a Company registered in India under the Indian Companies Act 1956 / 2013 or a Partnership Firm registered in India under the Partnership Act 1932 or latest.		Page-
2	Bidder should have implemented at least one IT Infrastructure project costing not less than Rs. 8 Crores, during last three financial years from the date of opening the bid. Further, in the project mentioned above - atleast one of the following Products / technologies must have been implemented in a Central / State PSU or Govt. Organization or BFSI or any Power Sector (Generation, Transmission or Distribution) c. NextGen Firewall d. Network Access Control		Page-
3	Bidder should be authorized system integrator / implementation partner of the offered OEM Product(s) for sale, support, and services		Page-
4	Minimum Average Annual Turnover (MAAT) of the Bidder should be not less than <u>Rs. 15 Crores</u> during last 3 financial years, i.e. 2022-23, 2023-24 and 2024-25.		Page-

Deployment of Gateway and Network Security

5	Net Worth should be positive for the each of the last three audited Financial Years. <i>'Net-worth' will consist of 'paid up equity capital, free reserves, balance in share premium account and capital reserves representing surplus arising out of sale proceeds of assets but not reserves created by revaluation of assets' adjusted for 'accumulated loss balance, book value of intangible assets and Deferred Revenue Expenditure, if any'.</i>		Page-
6	Bidder should have valid ISO 27001: 2013 or latest certificate as on the date of the opening of the bid.		Page-

Place

Signature of Bidder

Date

Name & Designation / Company Seal

Schedule-6**FINANCIAL CAPABILITY (Eligibility Criteria)**

(Part of "TECHNO-COMMERCIAL BID")

From: Bidder's Name & Address -

To

The Executive Director (EITC),
Energy InfoTech Centre,
Block No. 8, CSPDCL,
Dangania, Raipur – 492 013

Sub: Financial Capability for fulfilling the PQR / Eligibility Criteria.

Dear Sir,

Our **financial capability (Net worth & Annual Turnover)**, as required for fulfilling the PQR / Eligibility Criteria are as follows: -

Description	Bidder's Response		Remarks
Net Worth in Indian Rupees	Fiscal Year	Amount in Rupees	Pl. attach self-attested copy of audited annual financial statements (Balance Sheet and Profit & Loss Account) alongwith certificate in original of Chartered Accountant showing positive net worth for the specified years.
	2022-23		
	2023-24		
	2024-25		
Annual Turnover in Indian Rupees	2022-23		
	2023-24		
	2024-25		

**Place
Date**

**Signature of Bidder
Name
Designation / Status
Company Seal**

Schedule-7

Pending Litigation / Outstanding Liabilities

(Part of "TECHNO-COMMERCIAL BID")

From: Bidder's Name & Address -

To

The Executive Director (EITC),
Energy InfoTech Centre,
Block No. 8, CSPDCL,
Dangania, Raipur – 492 013

Sub: Declaration for Pending Litigation / Outstanding Liabilities required for fulfilling the PQR / Eligibility Criteria.

Dear Sir,

We hereby confirm that any sums of money due to CSPDCL as on the date of opening of tender; have been paid / settled in full, prior as on the date of opening of the tender.

**Place
Date**

**Signature of Bidder
Name
Designation / Status
Company Seal**

Schedule-8

Debarred / Blacklisted
(Part of "TECHNO-COMMERCIAL BID")

From: Bidder's Name & Address -

To

The Executive Director (EITC),
Energy InfoTech Centre,
Block No. 8, CSPDCL,
Dangania, Raipur – 492 013

Sub: Declaration for Debarred / Blacklisted required for fulfilling the eligibility criteria

Dear Sir,

We hereby confirm that our Company / Firm is not debarred / blacklisted by the State Govt. / Central Govt. / State PSU / Central PSU / SEB / Power Utility as on the date of opening of tender.

**Place
Date**

**Signature of Bidder
Name
Designation / Status
Company Seal**

Schedule-9

Pre-Contract Integrity Pact
(Part of "TECHNO-COMMERCIAL BID")

1. **GENERAL**

- a. This pre-bid contract Agreement (herein after called the Integrity Pact) is made on day of the month..... 2017, between, the Government of Chhattisgarh acting through Shri (Designation of the officer, Department) Government of Chhattisgarh (hereinafter called the "BUYER", which expression shall mean and include, unless the context otherwise requires, his successors in the office and assigns) and the First Party, proposes to procure (name of the Stores / Equipment / Work / Service) and M/s represented by Shri Chief Executive Officer (hereinafter called the "BIDDER/Seller", which expression shall mean and include, unless the context otherwise requires, his successors and permitted assigns) and the Second Party, is willing to offer/ has offered.
- b. WHEREAS the BIDDER is a Private Company/Public Company/ Government Undertaking/ Partnership/Registered Export Agency, constituted in accordance with the relevant law in the matter and the BUYER is a Ministry/Department of the Government, performing its function on behalf of the Government of Chhattisgarh.

2. **OBJECTIVES**

NOW, THEREFORE, the BUYER and the BIDDER agree to enter into this pre-contract agreement, hereinafter referred to as Integrity Pact, to avoid all forms of corruption by following a system that is fair, transparent and free from any influence/prejudiced dealings prior to, during and subsequent to the Contract to be entered into with a view to: -

- 2.1 Enabling the BUYER to obtain the desired Stores / Equipment / Work / Service at a competitive price in conformity with the defined specifications by avoiding the high cost and the distortionary impact of corruption on public procurement, and
- 2.2 Enabling BIDDERS to abstain from bribing or indulging in any corrupt practices in order to secure the contract by providing assurance to them that their competitors will also abstain from bribing any corrupt practices and the BUYER will commit to prevent corruption, in any form, by its official by following transparent procedures.

3. **COMMITMENTS OF THE BUYER**

The BUYER commits itself to the following: -

- 3.1 The BUYER undertakes that no official of the BUYER, connected directly or indirectly with the contract, will demand, take promise for or accept, directly or through intermediaries, any bribe,

consideration, gift, reward, favour or any material or immaterial benefit or any other advantage from the BIDDER, either for themselves or for any person, organization or third party related to the contract in exchange for an advantage in the bidding process, bid evaluation, contracting or implementation process related to the contract.

- 3.2 The BUYER will, during the pre-contract stage, treat BIDDERS alike, and will provide to all BIDDERS the same information and will not provide any such information to any particular BIDDER which could afford an advantage to that particular BIDDER in comparison to the other BIDDERS.
- 3.3 All the officials of the BUYER will report the appropriate Government office any attempted or completed breaches of the above commitments as well as any substantial suspicion of such a breach.

In case any such preceding misconduct on the part of such official(s) is reported by the BIDDER to the BUYER with the full and verifiable facts and the same prima facie found to be correct by the BUYER, necessary disciplinary proceedings, or any other action as deemed fit, including criminal proceedings may be initiated by the BUYER and such a person shall be debarred from further dealings related to the contract process. In such a case while an enquiry is being conducted by the BUYER the proceedings under the contract would not be stalled.

4. **COMMITMENTS OF BIDDERS**

The BIDDER commits itself to take all measures necessary to prevent corrupt practices, unfair means an illegal activity during any stage of its bid or during any pre-contract or post-contract stage in order to secure the contract or in furtherance to secure it and in particular commit itself to the following: -

- a. The BIDDER will not offer, directly or through intermediaries, any bribe, gift, consideration, reward, favour, any material or immaterial benefit or other advantage, commission, fees, brokerage or inducement to any official of the BUYER, connected directly or indirectly with the bidding process, or to any person, organization or third party related to the contract in exchange for any advantage in the bidding, evaluation, contracting and implementation of the contract.
- b. The BIDDER further undertakes that it has not given, offered or promised to give, directly or indirectly any bribe, gift, consideration, reward, favour, any material or immaterial benefit or other advantage, commission, fees, brokerage, or inducement to any official of the BUYER or otherwise in procuring the Contract of forbearing to do or having done any act in relation to the obtaining or execution of the contract or any other contract with the

Government for showing or forbearing to show favour or disfavour to any person in relation to the contract or any other contract with the Government.

- c. The BIDDER further confirms and declares to the BUYER that the BIDDER in the original Manufacture/Integrator/Authorized government sponsored export entity of the stores and has not engaged any individual or firm or company whether Indian or foreign to intercede, facilitate or in any way to recommend to the BUYER or any of its functionaries, whether officially or unofficially to the award of the contract to the BIDDER, nor has any amount been paid, promised or intended to be paid to any such individual, firm or company in respect of any such intercession, facilitation or recommendation.
- d. The BIDDER, either while presenting the bid or during pre-contract negotiations or before signing the contract, shall disclose any payment he has made, is committed to or intends to make to officials of the BUYER or their family members, agents, brokers or any other intermediaries in connection with the contract and the details of services agreed upon for such payments.
- e. The BIDDER will not collude with other parties interested in the contract to impair the transparency, fairness and progress of the bidding process, bid evaluation, contracting and implementation of the contract.
- f. The BIDDER will not accept any advantage in exchange for any corrupt practice, unfair means and illegal activities.
- g. The BIDDER shall not use improperly, for purpose of competition or personal gain, or pass on to others, any information provided by the BUYER as part of the business relationship, regarding plans, technical proposal and business details, including information contained in any electronic data carrier. The BIDDER also undertakes to exercise due and adequate care lest any such information is divulged.
- h. The BIDDER commits to refrain from giving any complaint directly or through any other manner without supporting it with full and verifiable facts.
- i. The BIDDER shall not instigate or cause to instigate any third person to commit any of the acts mentioned above.

5. **PREVIOUS TRANSGRESSION**

- a. The BIDDER declares that no previous transgression occurred in the last three years immediately before signing of this Integrity Pact with any other company in any country in respect of any corrupt practices envisaged hereunder or with any Public Sector Enterprise in India or any Government Department in India that could justify BIDDER'S exclusion from the tender process.

- b. If the BIDDER makes incorrect statement on this subject, BIDDER can be disqualified from the tender process or the contract, if already awarded, can be terminated for such reason.

6. **EARNEST MONEY / SECURITY DEPOSIT**

- 6.1 Every BIDDER while submitting commercial bid, shall deposit an amount as specified in RFP as Earnest Money/Security Deposit, with the BUYER through any of the following instruments:
 - i. Bank Draft or a Pay Order in favour of
 - ii. A confirmed guarantee by an Indian Nationalised Bank, promising payment of the guaranteed sum of the (BUYER) on demand within three working days without any demur whatsoever and without seeking any reasons whatsoever. The demand for payment by the BUYER shall be treated as conclusive proof of payment.
 - iii. Any other mode or through any other instrument (to be specified in the RFP).
- 6.2 The Security Deposit shall be valid upto a period of three years or the complete conclusion of the contractual obligations to the complete satisfaction of both the BIDDER and BUYER, including warranty period, whichever is later.
- 6.3 In the case of selected BIDDER, a clause would also be incorporated in the Article pertaining to Performance Bond in the Purchase Contract that the provisions of Sanctions for violation shall be applicable for forfeiture of Performance Bond in case of a decision by the BUYER to forfeit the same without assigning any reason for imposing sanction for violation of this Pact.
- 6.4 No interest shall be payable by the BUYER to the BIDDER on Earnest Money / Security Deposit for the period of its currency.

7. **SANCTIONS FOR VIOLATIONS**

- 7.1 Any breach of the aforesaid provisions by the BIDDER or any one employed by it or acting on its behalf (whether with or without the knowledge of the BIDDER) shall entitle the BUYER to take all or any one of the following actions, wherever required: -
 - i. To immediately call off the pre contract negotiations without assigning any reason or giving any compensation to the BIDDER. However, the proceedings with the other BIDDER(s) would continue.
 - ii. To forfeit fully or partially the Earnest Money Deposit (in pre-contract stage) and/or Security Deposit/Performance Bond (after the contract is signed), as decided by the BUYER and the BUYER shall not be required to assign any reason therefore.

Deployment of Gateway and Network Security

- iii. To immediately cancel the contract, if already signed, without giving any compensation to the BIDDER.
- iv. To recover all sums already paid by the BUYER, and in case of the Indian BIDDER with interest thereon at 2% higher than the prevailing Prime Lending Rate while in case of a BIDDER from a country other than India with Interest thereon at 2% higher than the LIBOR. If any outstanding payment is due to the BIDDER from the BUYER in connection with any other contract such outstanding payment could also be utilized to recover the aforesaid sum and interest.
- v. To encash the advance bank guarantee and performance bond/warranty bond, if furnished by the BIDDER, in order to recover the payments, already made by the BUYER, along with interest.
- vi. To cancel all or any other contracts with the BIDDER and the BIDDER shall be liable to pay compensation for any loss or damage to the BUYER resulting from such cancellation/rescission and the BUYER shall be entitled to deduct the amount so payable from the money(s) due to the BIDDER.
- vii. To debar the BIDDER from participating in future bidding processes of the Government of Chhattisgarh for a minimum period of three years, which may be further extended at the discretion of the BUYER.
- viii. To recover all sums paid in violation of this Pact by BIDDER(s) to any middlemen or agent or broken with a view to securing the contract.
- ix. In cases where irrevocable Letters of Credit have been received in respect of any contract signed by the BUYER with the BIDDER, the same shall not be opened.
- x. If the BIDDER or any employee of the BIDDER or any person acting on behalf of the BIDDER, either directly or indirectly, is closely related to any of the officers of the BUYER, or alternatively, if any close relative of an officer of the BUYER has financial interest/stake in the BIDDER'S firm, the same shall be disclosed by the BIDDER at the time of filling of tender. Any failure to disclose the interest involved shall entitle the BUYER to rescind the contract without payment of any compensation to the BIDDER.

The term 'close relative' for this purpose would mean spouse whether residing with the Government servant or not, but not include a spouse separated from the Government servant by a decree or order of a competent court; son or daughter or step son or step daughter and wholly dependent upon Government servant, but does not

include a child or step child who is no longer in any way dependent upon the Government servant or of whose custody the Government servant has been deprived of by or under any law; any other person related, whether by blood or marriage, to the Government servant or to the Government servant's wife or husband and wholly dependent upon Government servant.

xi. The BIDDER shall not lend to or borrow any money from or enter into any monetary dealings or transactions, directly or indirectly, with any employee of the BUYER, and if he does so, the BUYER shall be entitled forthwith to rescind the contract and all other contracts with the BIDDER. The BIDDER shall be liable to pay compensation for any loss or damage to the BUYER resulting from such rescission and the BUYER shall be entitled to deduct the amount so payable from the money(s) due to the BIDDER.

7.2 The decision of the BUYER to the effect that a breach of the provisions of this pact has been committed by the BIDDER shall be final and conclusive on the BIDDER. However, the BIDDER can approach the Monitor(s) appointed for the purposes of this Pact.

8. **FALL CLAUSE**

The BIDDER undertakes that if has not supplied/is not supplying similar product/systems or subsystems at a price lower than that offered in the present bid in respect of any other Department of the Government of Chhattisgarh or PSU and if it is found at any stage that similar product/systems or sub systems was supplied by the BIDDER to any other Department of the Government of Chhattisgarh or a PSU at a lower price, then that very price, with due allowance for elapsed time, will be applicable to the present case and the difference in the cost would be refunded by the BIDDER to the BUYER, if the contract has already been concluded.

9. **INDEPENDENT MONITORS**

9.1 The BUYER will appoint Independent Monitors (hereinafter referred to as Monitors) for this Pact.

9.2 The task of the Monitors shall be to review independently and objectively, whether and to what extent the parties comply with the obligations under this Pact.

9.3 The Monitors shall not be subject to instructions by the representatives of the parties and perform their functions neutrally and independently.

9.4 Both the parties accept that the Monitors have the right to access all the documents relating to the project/procurement, including minutes of meetings. The Monitor shall be under contractual

obligation to treat the information and documents of the BIDDER/Subcontractor(s) with confidentiality.

9.5 As soon as the Monitor notices, or has reason to believe, a violation of this Pact, he will so inform the Authority designated by the BUYER.

9.6 The Monitor will submit a written report to the designated Authority of BUYER/Secretary in the Department/within 8 to 10 weeks from the date of reference or intimation to him by the BUYER/BIDDER and, should the occasion arise, submit proposals for correcting problematic situations

10. FACILITATION OF INVESTIGATION

In case of any allegation of violation of any provisions of this Pact or payment of commission, the BUYER or its agencies shall be entitled to examine all the documents including the Books of Accounts of the BIDDER and the BIDDER shall provide necessary information of the relevant documents and shall extend all possible help for the purpose of such examination.

11. LAW AND PLACE OF JURISDICTION

This Pact is subject to Indian Law, the place of performance and jurisdiction shall be the seat of the BUYER.

12. OTHER LEGAL ACTIONS

The actions stipulated in this Integrity Pact are without prejudice to any other legal action that may follow in accordance with the provisions of the any other law in force relating to any civil or criminal proceedings.

13. VALIDITY

13.1 The validity of this Integrity Pact shall be from the date of its signing and extend up to 5 years or the complete execution of the contract to the satisfaction of the BUYER and the BIDDER / Seller whichever is later. In case BIDDER is unsuccessful, this Integrity Pact shall expire after six months from the date of the signing of the contract.

13.2 If one or several provisions of this Pact turn out to be invalid; the remainder of this Pact shall remain valid. In such case, the parties will strive to come to an agreement to their original intentions.

The parties hereby sign this Integrity Pact at on
.....

BUYER

BIDDER

Name of the Officer/CEO

Schedule-10

Authenticity of Documents Submitted

(Part of "TECHNO-COMMERCIAL BID")

From: Bidder's Name & Address -

To

The Executive Director (EITC),
Energy InfoTech Centre,
Block No. 8, CSPDCL,
Dangania, Raipur. 492013

Sub: Declaration for Documents Authenticity required for fulfilling the eligibility criteria

Dear Sir,

We hereby confirm that all the documents / statements / attachments / information submitted by us as a proof of the Pre-Qualifying Requirements (PQR) are authentic / genuine / correct and in case, any of the said documents / statements / attachments / information is found to be false / fake / misleading, we will be disqualified and action will be taken against us as per relevant provisions of the tender.

**Place
Date**

**Signature of Bidder
Name
Designation / Status
Company Seal**

Deployment of Gateway and Network Security

Schedule –11

Price Bid Format

Bidders are required to quote in Price Tab directly in e-bidding Portal as below –

SN	Description	UoM	Qty	Total Cost Without GST	GST %age	GST Amount	Total Amount (incl.GST)
		(A)	(B)	(C)	(D)	(E=CxD)	(F=C+E)
1	Next-Gen Firewall	Set	1			<Auto Fill>	<Auto Fill>
2	NAC and Network Security	Lot	1			<Auto Fill>	<Auto Fill>
3	Implementation and Upgradation Cost	Lot	1			<Auto Fill>	<Auto Fill>
Total Project Cost		N/A	N/A	N/A	N/A	<Auto Fill>	<Auto Fill>

DISCLAIMER

The information contained in this tender document concerning the terms and conditions of tender and provided to prospective bidders would not make any case of representation against Chhattisgarh State Power Distribution Company Limited or any of its employees on account of accuracy, reliability or completeness of the information.

This document is neither an agreement nor an offer or invitation by the Chhattisgarh State Power Distribution Company Limited to any other party. The purpose of this document is to provide prospective bidders with information to assist them in formulation of their proposal. This document may not be appropriate for all persons, as it is not possible for Chhattisgarh State Power Distribution Company Limited and its representatives, employees to consider the investment objectives, financial situation and particular needs of each bidder who reads or uses this document. Each Bidder should conduct their own investigation and analysis and should check the accuracy, reliability and completeness of the information contained in this document. They are advised to obtain independent inputs from appropriate sources. Chhattisgarh State Power Distribution Company Limited and its representatives, employees make no representation or guarantee to the accuracy, reliability or completeness of the information contained in this document.

Chhattisgarh State Power Distribution Company Limited or its authorised representatives may, in their discretion, but without being under any obligation to do so, update or supplement the information in this document.

Confidentiality Statement (Non-Disclosure)

The Bidder should treat this document as confidential. The document details should not be disclosed, transmitted, or duplicated, used in whole or in part for any purposes other than its intended purpose. Any use or disclosure in whole or in part of this information without express written permission of CSPDCL is prohibited. The Bidder would also be responsible that their employees, liaisoner, agents observe this non-disclosure requirement as well.

The Bidder would, however, have the right to share the contents of this tender document with their advisors, consultants, OEM, sub-contractors, financial institutions etc for the purpose of preparing their offer and for competing for the award of the tendered work, under condition that the Bidder would continue to be responsible and liable for ensuring that their advisors consultants, OEM, sub-contractors, financial institutions etc. treat this information in confidentiality.

